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WP
FR-88/25

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.P.No. _____ / 2025

BETWEEN:

Lakshman Babu Patgar

... Petitioner

AND:

State of Karnataka and others

.... Respondents

I N D E X

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Bengaluru

Date: 06/01/2025

Advocate for Petitioner
(S. V. PRAKASH)

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.P.No. _____ / 2025

BETWEEN:

Lakshman Bobbu Patgar ... Petitioner

AND:

State of Karnataka and others Respondents

LIST OF DATES, EVENTS AND SYNOPSIS

DATES	EVENTS
20.09.1991	The petitioner has made an application seeking regularization of his unauthorized cultivation of land measuring 2 acres comprised in Sy. No. 1 of Devakathikoppa Village, Kasaba Hobli Shivamogga Taluk and district.
18.12.1998	The petitioner made one more application under form No. 53 in terms of Section 94-B of the Act seeking to regularized his unauthorized occupation of the aforesaid land.
31.10.2002	The fourth respondent committee passed resolution rejecting the application of the petitioner on the ground that the land comes within 5 kilometers radius from Shivamogga city limits.
17.09.2010	The appeal filed by the petitioner before the third respondent against the resolution of the fourth respondent in R.A.No.03/2003-04 came to be dismissed.

12.09.2013	The second appeal filed by the petitioner before the second respondent against the order of the third respondent was dismissed.
18.09.2024	The revision petition filed by the petitioner before the Karnataka Appellate Tribunal Bangalore in Revision petition No. 30/2017 against the order of the second respondent was dismissed.

:-BRIEF FACTS OF THE CASE:-

The petitioner from the time of his father was and has been in unauthorized cultivation of 2 acres of land comprised in Sy.No. 1 of Devakathikoppa Village, Shivamogga Taluk and District as unauthorized cultivator. The father of the petitioner constructed a residential house in the said land and has been in occupation of the same along with his family and the local body has assessed the said house for property tax. The petitioner made an application under form No. 50 in terms of Section 94-A of the Act before the fifth respondent on 20.09.1991. Since, the said application was not considered the petitioner on the advice of his well-wishers made another application under form No. 53 in terms of Section 94-B of the Act. The fifth respondent has placed the said application before the committee for its consideration along with mahazar and the sketch prepared by the inferior revenue authorities. The fourth respondent committee by its anonymous resolution dated 30.12.2010 rejected the application of the petitioner on the ground that the land comes within 5 kilometers radius

from Shivamogga city limits. The said resolution of the fourth respondent was unsuccessfully challenged before the respondents 2 and 3 by way of appeals. The petitioner aggrieved by the order of the second respondent approached the Karnataka Appellate Tribunal invoking its revisional jurisdiction in Revision petition No. 30/2017. The Karnataka Appellate Tribunal by an order dated 18.09.2024 dismissed the revision petition. The aforesaid orders run counter to the law declared by this Hon'ble court in the decision reported in **ILR 2007 KAR page 1521** and the decision Reported in **2017 (4) KCCR Page 2994**. The petitioner aggrieved by the said orders, the petitioner has presented this memorandum of writ petition.

BENGALURU
DATE: 06/01/2025

ADVOCATE FOR PETITIONER
(S. V. PRAKASH)

H
IN THE HIGH COURT OF KARNATAKA AT BENGALURU

(Original Jurisdiction)

W.P.No. _____ / 2024 (KLR)

BETWEEN:

Lakshman Babu Patgar,
S/o Babbu B Patgar,
Aged about 59 years,
Occ: Agriculturist and Service,
R/o. Devakathikoppa Village,
Kotegangur Post,
Shivamogga Taluk and District-577204.

...Petitioner

AND:

1. **State of Karnataka**
Represented by its Principal Secretary
Department of Revenue,
M.S. Building,
Dr. B.R.Ambedkar Veedhi,
Bengaluru-560001.
2. **The Deputy Commissioner,**
Shivamogga District,
Shivamogga- 577201.
3. **The Assistant Commissioner,**
Shivamogga Sub-Division,
Shivamogga- 577201.
4. **The Committee Constituted for
Regularization of Unauthorized Cultivation of
Government Lands,**
Shivamogga Taluk,
Shivamogga-577201.
Represented by its Secretary.
5. **Tahsildar,**
Shivamogga Taluk,
Shivamogga-577201.

... Respondents

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**MEMORANDUM OF WRIT PETITION
UNDER ARTICLES 226 AND 227 OF CONSTITUTION OF
INDIA**

The petitioner submits as under:-

- 1) The petitioner has presented the captioned writ petition seeking to issue a writ in the nature of certiorari and quash the order dated 18.09.2024 passed by the Karnataka Appellate Tribunal, Bengaluru in Revision Petition No. 30/2017 confirming the order dated 12.09.2013 passed by the 2nd respondent in R.A. No. 22/2012-13 thereby confirming the resolution passed by 4th respondent dated 31.10.2002 rejecting the application of the petitioner seeking regularization of his unauthorized cultivation over 2 acres of land in Sy. No. 1 of DevakathiKoppa Village, Shivamogga Taluk and District and prays for other consequential reliefs.
- 2) The petitioner is an ordinarily resident of DevakathiKoppa village, Shivamogga Taluk and District, so also his father Bobbu Patgar. The father of the petitioner was in unauthorized occupation of 2 acres of land comprised in Sy. No. 1 of DevakathiKoppa village, Shivamogga Taluk and was growing dry crops and other crops depending upon the monsoon. The petitioner submits that the total extent of land comprised in Sy. No. 1 of DevakathiKoppa is 11 acres belonging to benign Government and it was not reserved for any particular purpose. The petitioner and his father were and have been in un-authorized cultivation of aforesaid land much

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earlier to 14.04.1990 which is the appointed date for the purpose of section 94-A of the Karnataka Land Revenue (Amendment) Act, 1990 (hereinafter referred to as the Act for short).

- 3) The petitioner has made an application seeking regularization of his un-authorized cultivation over the aforesaid land under Form No. 50 in terms of section 94-A of the Act on 20.09.1991 and a true copy of the acknowledgement issued by the 5th respondent is produced herewith marked as **ANNEXURE-A**. Since his application was not considered by the 4th respondent even after 7-8 years, the petitioner on the advice of his well-wishers made one more application seeking the same relief in respect of aforesaid land under Form No. 53 in terms of section 94-B of the Act and a true copy of the endorsement dated 18.12.1998 issued by the 5th respondent is produced herewith and marked as **ANNEXURE-B**.
- 4) It is submitted that, the father of the petitioner constructed a residential house in the aforesaid land and the petitioner along with his family is in occupation of the said house. The Kote Gangur Grama Panchayath has assessed the said house for property tax and the name of the petitioner is entered in the books and register maintained by said Panchayath and the house has been assigned with Khaneshumaari Number as 101 and a copy of assessment demand register extract in respect of the

said house for the year 1994-95 is produced herewith and marked as **ANNEXURE-C**. A true copy of the assessment demand register extract in respect of the said house for the year 1995-96 is produced herewith and marked as **ANNEXURE-D**. A true copy of the assessment demand register extract (Form No. 12) issued by the Kote Gangur Grama Panchayath in respect of the said house for the year 2006-07 is produced herewith and marked as **ANNEXURE-E**.

- 5) The petitioner submits that, the subordinate officials of 5th respondent conducted local inspection of the aforesaid land in the occupation of the petitioner and a drew mahazar and prepared sketch showing the aforesaid land in the occupation of the petitioner and his father. The villagers have made a statement to the effect that the petitioner and his father were in possession and un-authorized cultivation of the aforesaid land. A true copy of the mahazar drawn on 12.01.1998 is produced herewith and marked as **ANNEXURE-F**. A true copy of the sketch prepared by the surveyor showing the aforesaid land in the cultivation of the petitioner is produced herewith and marked as **ANNEXURE-G**.
- 6) The petitioner submits that the 5th respondent appeared to have placed the application filed him under form No. 53 along with other documents before the fourth respondent to consider his request for regularization of his unauthorized cultivation over the aforesaid land. The

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fourth respondent took up the application made by the petitioner in its meeting held on 31.10.2002 along with the similar application made by other persons in respect of the lands situated at Devakathikoppa, Navile, Gejjenahalli, Sominakoppa and other villages coming within Kasaba-II Hobli, Shivamogga District. The fourth respondent without properly considering the documents relating to the case of the petitioner and by a unanimous resolution dated:31.10.2002 rejected the application of the petitioner and others in respect of the lands situated at the villages coming within Kasaba-II Hobli, Shivamogga Taluk and District on the ground that the said villages situated within 5 kilometer radius from Shivamogga City limits. Consequently, the application made by the petitioner was rejected by the fourth respondent. A copy of the resolution dated: 31.10.2002 passed by the fourth respondent rejected the application of the petitioner is produced herewith and marked as **ANNEXURE- H.**

- 7) The petitioner having been aggrieved by the resolution of the fourth respondent rejecting his application for regularization of his unauthorized cultivation over the aforesaid land preferred an appeal before the third respondent in R.A.No.3/03-04. The third respondent without considering the ground urged in the appeal and contentions canvassed in the course of the arguments by an cryptic and cursory order dated: 17.09.2010

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dismissed the appeal and thereby confirmed the impugned resolution passed by the fourth respondent and third a copy of the said order is produced herewith and marked as **ANNEXURE-J**.

- 8) The petitioner being aggrieved by the order of the third respondent dismissing his appeal carried the same by way of second appeal before the second respondent in R.A.No. 22/2012-13. The second respondent by his order dated: 12.09.2013 by a non-speaking order dismissed the appeal and thereby confirmed the order of the third respondent as well as the resolution passed by the fourth respondent and a copy of the said order is produced herewith and marked as **ANNEXURE-K**.
- 9) The petitioner submits that the respondents 2 & 3 have not considered that as on the appointed date and also as on the date of the application made by him seeking regularization of his un-authorized cultivation, the land in question did not come within the five kilometer radius from Shivamogga City limits. Both the authorities have not considered the documents produced the petitioner to demonstrate that the land in question does not come with the Shivamogga City limits and thereby erroneously dismissed the appeals preferred by the petitioner.
- 10) The petitioner making grouse against the order of the second respondent filed a revision petition before the Karnataka Appellate Tribunal Bengaluru invoking its

revisional jurisdiction in terms of the Section 56 read with Section 57 of the Act in Revision Petition No. 30/2017. Before the Karnataka Appellate Tribunal, Bengaluru, the petitioner has produced the documents along with an application seeking permission to produce the documents. Apart from the documents, the petitioner has also relied upon the reported and unreported decisions of this Hon'ble Court on the issue involved in the revision petition along with memo dated: 26.12.2023. The Karnataka Appellate Tribunal without considering the documents produced by the petitioner and without following the law declared by this Hon'ble Court by an order dated: 18.09.2024 dismissed by the revision petition and thereby confirmed the resolution passed by the fourth respondent as well as the orders passed by the respondents 2 & 3. Certified copy of the order passed by the Karnataka Appellate Tribunal Bengaluru dated: 18.09.2024 in Revision Petition No. 30/2017 is produced herewith and marked as **ANNEXURE-L.**

- 11) The petitioner submits that the Karnataka Appellate Tribunal is not justified in holding that the petitioner produced the certificate issued by the Department of Public Works to the effect that Devakathikoppa village comes within 4.4.20 kilometers from Shivamogga City limits. The petitioner has produced the copy of the endorsement dated: 08.01.2015 issued by the City

Municipal Council Shivamogga on the application made by the petitioner under the provisions of the Right to Information Act and along with the said endorsement, a copy of the Karnataka official Gazette was enclosed. A true copy of the endorsement dated: 08.01.2015 issued by CMC Shivamogga is produced herewith and marked as **ANNEXURE-M**. A true copy of the Karnataka Gazette published by authority (Extra Ordinary) Part IV-2.C (II) of the Housing and Urban Development Secretariat vide Notification No. HUD 94 TML 77 Bangalore, dated: 11.04.1978 is produced herewith and marked as **ANNEXURE-N**. A true copy of the notification No. HUD 641, Mysore Land Revenue Code, 95 (2) dated: 02.11.1995 Karnataka Gazette, Extraordinary, dated: 02.11.1995 is produced herewith and marked as **ANNEXURE-P**. A true copy of the notification issued by the Urban Development Secretariat bearing No. UDD 152 Mysore Land Revenue Code, 2013, Bangalore, dated: 20.12.2013 is produced herewith and marked as **ANNEXURE-Q**.

- 12) The petitioner submits that from the documents produced by him it is pellucid that on the appointed date under Section 94-A and 94-B of the Act, namely 14.04.1990 and also on the date of the application made by the petitioner under form No. 50, Devakathikoppa village did not come within 5 kilometer radius from Shivamogga City Municipal limits and therefore, the

resolution passed by the fourth respondent rejecting the application of the petitioner on the said ground as well as the order passed by the respondents 2 & 3 and also that of the order of the Karnataka Appellate Tribunal Bengaluru cannot be sustained. This Hon'ble Court in umpteen number cases held that the change of city limits subsequent to the date of application seeking regularization of un-authorized cultivation cannot be considered. The orders passed by the respondents 2 to 4 and order of the Karnataka Appellate Tribunal confirming the same run counter to the law declared by this Hon'ble Court.

- 13) The petitioner having been highly aggrieved by the order passed by the Karnataka Appellate Tribunal confirming the orders passed by the respondents 2 & 3 thereby confirming the resolution passed by the fourth respondent has presented this memorandum of writ petition on the following amongst other valid grounds to be urged at the time of hearing:-

:-G R O U N D S:-

- 14) The impugned order passed by the Karnataka Appellate Tribunal confirming orders passed by the respondents 2 & 3 thereby upholding the resolution of the 4th respondent suffers from the vices of total non-application of mind.

- 15) The Karnataka Appellate Tribunal has committed serious error in not following the binding decision of this Hon'ble Court in the matter of considering the application for regularization of un-authorized cultivation of Government lands. The application of the petitioner for regularization of his unauthorized cultivation was refused on the ground that the land falls within 5 kilometer radius from Shivamogga city Municipal limits. As could be seen from the resolution passed by the fourth respondent there is no finding when Devakathikoppa Village falls within 5 kilometer radius from Shivamogga city limits. This Hon'ble court in identical circumstances, held that the variation of the city limit after filing of applications under section 94-A of 94-B of the Act cannot be considered. Though the said decisions of this Hon'ble court having been brought to the notice of the Tribunal as well as the respondents 2 and 3 same was not considered and in the result an erroneous order came to be passed. Therefore, in view of the law declared by this Hon'ble court the impugned order of the tribunal cannot be sustained.
- 16) The tribunal as well as the respondents 2 and 3 has not considered the documents produced by the petitioner to demonstrate that Devakathikoppa Village does not fall within five kilometers radius from Shivamogga city limits. The notification dated 11.04.1978 issued by the Housing and Urban Development Secretariat of Government of Karnataka Published in Karnataka

extraordinary Gazette would clearly reveal that as on the date of notification Devakathikoppa village was far away from 5 kilometer radius from Shivamogga city limit. Another notification issued by the government dated 02.11.1995 also showed that Devakathikoppa village did not come within five kilometers radius from Shivamogga city limits. The one more notification issued on 20.12.2013 which was published in the official gazette would show that Devakathikoppa village is far away from Shivamogga city limits. From the reading of impugned order it is pellucid that the tribunal has committed an error in confirming the orders of the respondents 2 and 3.

- 17) The tribunal and the respondents 2 and 3 failed to appreciate that under section 94-A, an applicant to seek for regularization of his unauthorized cultivation is required to establish that he was in unauthorized cultivation of the land three years next before 14.04.1990 which is the appointed date. From the above it is manifested that right to seek regularization of the unauthorized cultivation of government land is crystallized as on 14.04.1990. Therefore, the fourth respondent-committee is required to consider the nature of the land as admitted as on 14.04.1990. If the land, in respect of which application is made for regularization, lies within 5 kilometers radius from the city limits, such a land cannot be granted by way of regularization.

However, this Hon'ble Court in the case of "**Rama Naik Vs. Deputy Commissioner and others** reported in **ILR 2007 KAR Page 1521**" held that the consideration of the development that has taken place after the application was made for regularization is illegal. If the law laid down by this Hon'ble court in the aforesaid decision is applied, the impugned order passed by the tribunal cannot be accepted.

- 18) The tribunal and the respondents 2 and 3 have failed to follow the law declared by this Hon'ble court in the case of "**Mahadev and Others VS. State of Karnataka and other** reported in **2017 (4) KCCR Page 2994**". In the said decision this Hon'ble court has held that the committee cannot consider the development or variation of city limits that has taken place after the application seeking regularization was made by the applicant. In the case on hand, the petitioner has made an application under form No. 50 in terms of Section 94-A of the Act on 20.09.1991. Therefore, the committee is required to consider the city limits of Shivamogga city admitted as on 20.09.1991. Admittedly, as on the year 1991 Devakathikoppa village was far away from Shivamogga city limit. Therefore, the embargo contained under Rule 108-N of the Karnataka Land Revenue Rules 1966 has no application to the case of the petitioners. In the result, the contrary view taken by the tribunal and the respondents 2 and 3 run counter to the binding decisions

of this Hon'ble Court and therefore, the impugned order of the tribunal is liable to be set aside.

- 19) The tribunal in its order holds that as per the certificate issued by the department of Public Works Devakathikoppa village lies within 4.20 kilometers from Shivamogga city limits. There is no mention from which year, Shivamogga city limit was expanded. In absence of such finding having been return, the reasons assigned by the tribunal to dismiss the revision petition cannot be accepted.
- 20) The tribunal has not follow the law declared by this Hon'ble court in the above mentioned reported decisions which were supplied to the tribunal by the petitioner along with a memo dated 26.12.2023. It is needless to point out that having regard to the Article 141 of Constitution of India, the tribunal under obligation to follow the law declared by this Hon'ble Court. No reasons have been assigned by the tribunal in not following the law declared by this Hon'ble Court. In the Circumstances, the impugned order of the tribunal is liable to be quashed.
- 21) The authorities as well as the tribunal failed to appreciate that the petitioner has constructed a residential house in the land in respect of which application was made for regularization and the family of the petitioner is in occupation of the said house. Apart from that, the

tribunal and respondents 2 and 3 did not find any other flaws in the claim of the petitioner for regularization. Therefore, the tribunal ought to have allowed the revision petition and should have directed the fifth respondent to pass a formal order of grant.

- 22) The tribunal has not noticed that had the committee considered the application of the petitioner for regularization which was filed on 20.09.1991 without delay, the petitioner would have succeeded in obtaining the grant. Without any rhyme or reasons, the consideration of the application made by the petitioner was postponed and ultimately after lapse of 12 years, the same was taken up for consideration by the fourth respondent and by adopting wrong approach, the claim of the petitioner was illegally rejected.
- 23) Viewed from any angle the impugned order of the tribunal confirming the orders of the respondents 2 and 3 upholding the resolution of the fourth respondent is arbitrary and runs counter to the binding decisions of this Hon'ble Court. Hence, the impugned order of the tribunal is liable to be quashed.
- 24) Petitioner has no alternative or efficacious remedy for redressal of his grievance but to invoke the writ jurisdiction of this Hon'ble court available under Article 226 and 227 of Constitution of India.

- 25) The petitioner has not filed any other writ petition before this Hon'ble Court earlier to this writ petition for the cause of action for which the above writ petition is filed
- 26) The petitioner has not filed suit before the civil court or initiated any other proceedings before other authorities for cause of action for which the above writ petition is filed.
- 27) The petitioner craves leave of this Hon'ble Court to urge further grounds if necessary at the time of hearing and such a liberty may be reserved.

-:GROUNDS FOR INTERIM PRAYER:-

- 28) The petitioner is in actual possession and cultivation of the aforesaid land as an unauthorized cultivator. It is likely that the authorities may utilize the land in question for some other purpose or the authorities may grant to some other persons. The petitioner is in occupation of house property situated in the aforesaid land along with his family. Therefore, it is just and proper to direct respondents to not to allot or grant the 2 acres of land comprised in Sy. No. 1 of Devakathikoppa Village, Kasaba Hobli, Shivamogga Taluk and District pending disposal of above writ petition.

--- PRAYER ---

WHEREFORE, the petitioner most humbly prays that the Hon'ble Court may kindly be pleased to:-

- i) **Issue** a writ in the nature of certiorari and quash the order dated 18.09.2024 passed by the Karnataka Appellate Tribunal Bangalore in Revision petition No. 30/2017 produced as **ANNEXURE-L** to the writ petition and the order dated 12.09.2013 passed by the second respondent in R.A. No. 22/2012-13 produced as **ANNEXURE-K** and the order dated 17.09.2010 passed by the third respondent in R.A. No. 03/2003-04 produced as **ANNEXURE-J** and the resolution dated 31.10.2002, passed by the fourth respondent rejecting the application of the petitioner seeking regularization of the unauthorized cultivation over 2 acres of land in Sy. No. 1 of Devakathikoppa village, Kasaba Hobli, Shivamogga Taluk and District produced as **ANNEXURE-H** to the writ petition.
- ii) **Issue** an appropriate writ or order or direction directing the fourth respondent committee to grant 2 acres of land in Sy. No. 1 of Devakathikoppa village, Kasaba Hobli, Shivamogga Taluk and District by regularizing his unauthorized cultivation and direct the fifth respondent to pass a formal order of grant in terms of Rule 108-D(3) Karnataka Land Revenue Rules, 1966 and upon collecting up-set price from the

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petitioner and to issued grant certificate in respect of the aforesaid land.

- iii) **Issue** any other appropriate writ or order or direction as the Hon'ble court finds it appropriate in order to secure ends of justice.
- iv) **Award** the cost of this proceeding.

INTERIM PRAYER

Pending disposal of the above writ petition, issue an interim order directing the respondents not to grant the land measuring 2 acres in Sy. No. 1 of Devakathikoppa village, Kasaba Hobli, Shivamogga Taluk and District and pass such a suitable interim order as this Hon'ble Court finds it proper in the ends of justice.

BENGALURU

DATE: 03/01/2025

**ADVOCATE FOR PETITIONER
(S. V. PRAKASH)**

ADDRESS FOR SERVICE:-

SRI. S.V. PRAKASH
Advocate,
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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.P.No. _____ / 2024

BETWEEN:

Lakshman B. Patgar

@ Lakshman Bobbu Patgar

... Petitioner

AND:

State of Karnataka and others

.... Respondents

VERIFYING AFFIDAVIT

I, Lakshman B. Patgar @ Lakshman Bobbu Patgar, S/o. Babbu B Patgar @ Bobbu B Patgar, aged about 59 years, Occ: Agriculturist and Service, R/o. Devakathikoppa Village, Kotegangur Post, Shivamogga Taluk and District-577204, today having come to Bengaluru, do hereby solemnly affirm and state on oath as follows:-

1. I am the petitioner in the above case and am familiar with the facts of the case and as such I am competent to depose to the contents of this affidavit.
2. I state that the statements made in paragraphs 1 to 80 of the accompanying memorandum of writ petition are true and correct to the best of my knowledge, belief and information, which I believe them to be true.
3. The documents produced at Annexures-A to Annexure ~~in to. 9~~ are true copies and Annexures-~~1~~ and are certified copies.

I swear accordingly,

Identified by

Advocate

Bengaluru

Date: 11/1/2024

No. of corrections: 5

NO. OF CORRECTIONS 5 ONLY



DEPONENT

SWORN TO BEFORE ME

M.K. VENKATRAMANA
Advocate & Notary
No. 619, 'Krupa Kaveri'
10th 'A' Main, Third Stage
Basaveshwaramagar 4th Block
BANGALORE - 560 079

Book No. 101 Page No. 103
Date: 09/01/2024



SHIMOGA

✓ EPT

02/20/2019

ANNEXURE:

ವೊಂದರೂ ಸಂಖ್ಯೆ

19 AUG. CIVIL JUDGE (R. D.)
M.F.C. SHIMODA

2/9/91

ಶ್ರೀ/ಶ್ರೀಮತಿ ಲಕ್ಷ್ಮಿಬಾಳೆ. ಕುಟುಂಬ ಇವರಿಂದ ಇವಳಿಗೆ ಪಾಠ್ಯಕ್ಕಾಗಿ ಕನಾಡ ಹೋಟೆಲಿನಲ್ಲಿ
ಸೇವೆಗೊಳಿಸುವ ಸಮಯ 1 ರವರೆಗೆ 3 ವರೆಗೆ 5 ರವರೆಗೆ
ಒಟ್ಟು ಸಂಖ್ಯೆ 50 ಇಂದ, ಅರ್ಜಿಯನ್ನು ಸ್ವೀಕರಿಸಿದೆ.

ಇಂದ್ರ ಅರ್ಜಿಯನ್ನು ಸ್ತಬ್ಧಗೊಳಿಸಿದ.

20/9/91

[Faint, illegible handwritten notes]

ಕರ್ನಾಟಕದ ಸಾಂಸ್ಕೃತಿಕ ಪರಂಪರೆಯನ್ನು ಮುಂದುವರಿಸುವುದು ಮತ್ತು ಸಂಸ್ಕೃತಿಯನ್ನು ಸಂರಕ್ಷಿಸುವುದು.

Excluded
Special & Sessions Court
Attorney

TRUE COPY.

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Typed copy of Annexure-8 A

ಸ್ವೀಕೃತಿ

ನೋಂದಣಿ ಸಂಖ್ಯೆ:

ದಿನಾಂಕ : 20/09/91

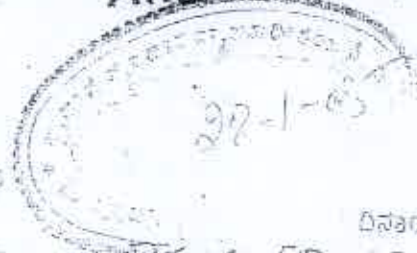
ಶ್ರೀ. ಶ್ರೀಮತಿ ಲಕ್ಷ್ಮಣ ಬಿ ಪಟಗಾರ ಇವರಿಂದ ಶಿವಮೊಗ್ಗ ತಾಲ್ಲೂಕು ಕಸಾ, ಹೋಬಳಿ ದೇವಕಾತಿಕೊಪ್ಪ, ಗ್ರಾಮದ ಸ.ನಂ.1 ರಲ್ಲಿನ 2 ಎಕರೆ ವಿಸ್ತೀರ್ಣದ ಫಾರಂ ನಂ.50 ಒಂದು ಅರ್ಜಿಯನ್ನು ಸ್ವೀಕರಿಸಿದೆ.

ಪಡೆದುಕೊಂಡ ಗುಮಾಸ್ತ ಮತ್ತು ಕಛೇರಿ ಮುದ್ರೆ

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ANNEXURE: B



ಮೂಲದ ನಾಲ್ಕು:

ನಿರ್ದೇಶ

ದಿನಾಂಕ: 15/12/98

ಶಿಕ್ಷಣ ಮತ್ತು ಸಾಂಸ್ಕೃತಿಕ ಇಲಾಖೆ

ಪ್ರಾ.ಸಂ 53 ಅನ್ವಯವಾಗಿ

ಆರೋಗ್ಯ ಸಾಂಸ್ಕೃತಿಕ ಬಗ್ಗೆಯ ಕುರಿತು ಸಾರ್ವಜನಿಕ ಮಾಹಿತಿ ಕಾರ್ಯಕ್ರಮ

ಸಂ. 1, 10-11-98 ರಿಂದ 15-12-98 ರವರೆಗೆ

ಪ್ರತಿ ಸಂಸ್ಥೆಗೆ ಗುರುತಿಸಲ್ಪಟ್ಟಿರುವ ಸಂಖ್ಯೆಯಲ್ಲಿ



CMO,

ಪದವಿಪೂರ್ವ ಗುಮಾಸ್ತರು ಮತ್ತು ಸಹಕರಿ ಮುದ್ರೆ

11 ADD. Civil Judge (Ct. & M.F.C. Shree



A

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25

Typed copy of Annexure-A

ಸ್ವೀಕೃತಿ

ನೋಂದಣಿ ಸಂಖ್ಯೆ:

ದಿನಾಂಕ: 18/12/98

ಶ್ರೀ : ಶ್ರೀ ಮತಿ ಲಕ್ಷ್ಮಣ ಬಿ ಪಟಗಾರ ಫಾರಂ ನಂ. 53 ಯನ್ನು ಇವರಿಂದ ಅಕ್ರಮ
ಸಾಗುವಳಿ ಗೊಳಪಟ್ಟು ಜಮೀನನ್ನು ಸಕ್ರಮಗೊಳಿಸುವ ಉದ್ದೇಶ ಸ. ನಂ. 1,
2-00 ಎಕ್ಕರೆ ದೇವಕಾತಿಕೊಪ್ಪ ಗ್ರಾಮ ಶಿವಮೊಗ್ಗ ತಾಲೂಕು, ಶಿವಮೊಗ್ಗ ಜಿಲ್ಲೆ
ಗೊಳಪಟ್ಟು ಅರ್ಜಿಯನ್ನು ಸ್ವೀಕರಿಸುತ್ತೆ.

ಪಡೆದುಕೊಂಡ ಗುಮಾಸ್ತ ಮತ್ತು ಕಛೇರಿ ಮುದ್ರೆ

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ಪರಾಕೆ: ಸಂಖ್ಯೆ 12/ನವಾಂ 18 (1) ಸಿ. ಸಿ. ನವಾಂ

ಹೆಸರು: ಬೆಂಗಳೂರು ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು

96

1994.10.95



ಶಿವಮೊಗ್ಗ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು
ಶಿವಮೊಗ್ಗ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು

ANNEXURE: C

107 ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು

ಸಂಖ್ಯೆ		ಸಂಖ್ಯೆ		ಸಂಖ್ಯೆ		ಸಂಖ್ಯೆ		ಸಂಖ್ಯೆ		ಸಂಖ್ಯೆ	
ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ
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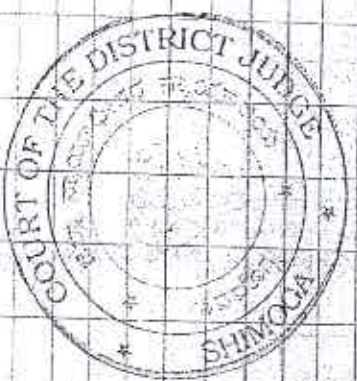
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20 P.T.



ಶಿವಮೊಗ್ಗ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು



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97

ಸಹಜ ಸಂಖ್ಯೆ 12 (ಮಾತು 18 (1) ನ್ನು ಪೂರೈಸಿ)
ಗ್ರಾಂಥ: ದೇವತಾಕವಿಕರಣೆ

1994-95-10 ನೇ ಸಾಲಿನಲ್ಲಿ ಒಟ್ಟಿನ ಕುರಿತು ನಿರ್ದೇಶನದ ರಿಪೋರ್ಟ್

(relevant portion)
TYPED COPY OF ANNEXURE-C

ಕೋಟಗಿರಿಯಲ್ಲಿ ಗ್ರಾಂಥ ಪಂಚಾಯಿತಿ

ನಿರ್ದೇಶನ																			
ಕ್ರಮ ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ	ಸಂಖ್ಯೆ															
				ಮಾತು				ಸಂಖ್ಯೆ				ಸಂಖ್ಯೆ				ಸಂಖ್ಯೆ			
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107	ಮಾತು	ಸಂಖ್ಯೆ	ಮಾತು	ಮಾತು	ಮಾತು	ಮಾತು	ಮಾತು	ಮಾತು	ಮಾತು	ಮಾತು	ಮಾತು	ಮಾತು	ಮಾತು	ಮಾತು	ಮಾತು	ಮಾತು	ಮಾತು	ಮಾತು	ಮಾತು

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ಕೆಳಕಂಡಂತಿರುವಂತೆ
ಗ್ರಾಂಥ ಪಂಚಾಯಿತಿ
ಕೋಟಗಿರಿಯಲ್ಲಿ
ನಿರ್ದೇಶನದ ರಿಪೋರ್ಟ್

1971-72

ANNEXURE: D

50

8/10

COLEGE ADOLPH
1940-1983

[illegible][illegible]

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31/10/92

5507-1

<u>Revised</u> <u>12/1/96</u>	<u>12/1/96</u>
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2020

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1995-96 ನೇ ಸಾಲಿನಲ್ಲಿ ಏರ್ಪಡಿಸಿದ ಹಣಕಾಸಿನ ಮೊತ್ತವನ್ನು

(relevant portion)
TYPED COPY OF ANNEXURE-D

ಸಮೂಹ ಸಂಖ್ಯೆ 12 (ಅನುಬಂಧ 15 (1) ನ್ನು ನೋಡಿ)
ಗ್ರಾ.ಮಂ: ದೇವತಾಪೀಠದವರು.

ಕೆ.ಎಚ್.ಪ್ರಸಂಗ್‌ರವರು ಈಗುವು ಪೆಂಚಾಯಿತಿ

ಬೆಂಗಳೂರು																					
ಕ್ರಮ ಸಂಖ್ಯೆ		ಎನ್.ಸಿ.ಎಂ. ರಿಜಿಸ್ಟ್ರಾರ್ ಕಛೇರಿ		ಪ್ರತಿ ಸಂಖ್ಯೆ		ಪ್ರತಿ ಬರಹದ ಅರ್ಥವು ಒಂದೇ ಆಗಿರುವುದು		ಸಾಕ				ಮಾನ್ಯ				ಅಧಿಕಾರಿ				ಮಾಹಿತಿ	
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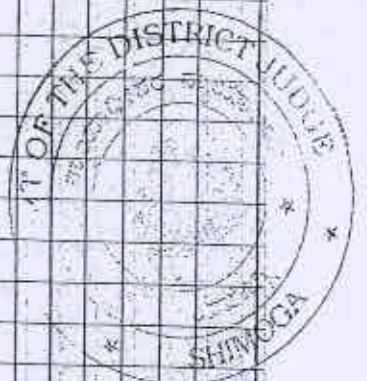
21	ಮುಖ್ಯಮಂತ್ರಿ ಕಛೇರಿ
22	ಜನಪ್ರತೀಕ ಕಛೇರಿ
23	ವಿಜಯ ಕಛೇರಿ
24	ವಿಜಯ ಕಛೇರಿ

W
THURSDAY

ಸಹಿ:-
ಇವರವರು
ಇವರು ಸಂಸ್ಥೆಯು ಸೇವೆಯನ್ನು ನೀಡುವ
ಆಧಾರವಾಗಿ ಸಹಿ.

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ANNEXURE - F



33

ಸರ್ಕಾರಿ
ಕಾರ್ಯದರ್ಶಿ
ಬಾಂಬೆ ಸೇವಾಧಿಕಾರಿಗಳು ಪ್ರವಾಸಿ ಪ್ರಾಂತ್ಯಗಳು ಈಗ ರಚನಾತ್ಮಕ ವ್ಯವಸ್ಥೆ -
ವ್ಯವಸ್ಥೆ - ಸರ್ವೆ ಪ್ರಾಂತ್ಯಗಳನ್ನು ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -
ಇವುಗಳಲ್ಲಿ ಒಂದರಲ್ಲಿ - ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -
ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -
ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -
ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -
ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -
ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -
ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -

ಈ ಪ್ರಾಂತ್ಯಗಳಲ್ಲಿ - ಸರ್ವೆ ಪ್ರಾಂತ್ಯಗಳನ್ನು ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -
ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -
ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -
ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -
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ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -
ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -
ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -

ಈಗ ವ್ಯವಸ್ಥಾಪಿಸಲು ಸಿದ್ಧರಾಗಿರುತ್ತೇವೆ -

* 7 ಮಾರ್ಚ್

S. Veerappa EP6

D.B. Kulkarni

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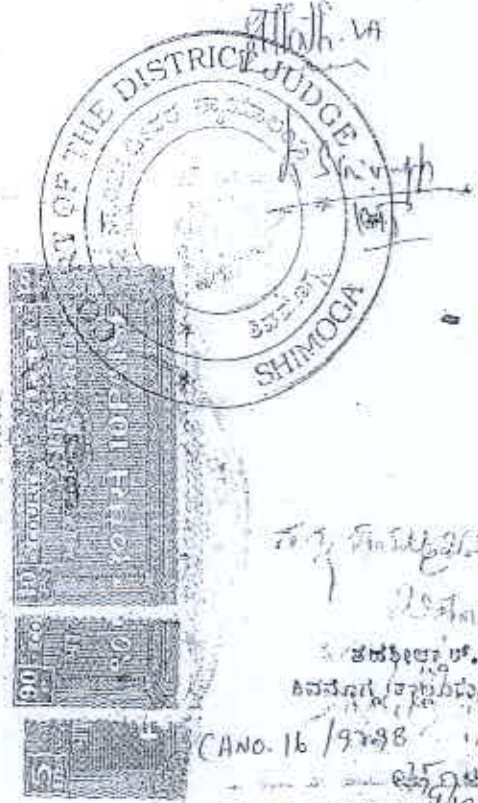
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ಸರ್ಕಾರಕ್ಕೆ

ಶಿವಮೊಗ್ಗ ತಾಲೂಕು ತಹಸೀಲ್ದಾರ್ ಸಾಹೇಬರವರ ರೂಬು ರೂಬು ದೇವಕಾತಿ ಕೊಪ್ಪ ಗ್ರಾಮದ ಗ್ರಾಮಸ್ಥರು ಹೇಳಿ ಬರೆಹಿಸಿದ ಮಹಜರು ಏನೆಂದರೆ - ನಮ್ಮ ಗ್ರಾಮದ ವಾಸಿಗಳಾದ ವಿಲ್ ಸನ್ನಾಸ್ ಲಕ್ಷ್ಮಣ ಬಾಬು ನಟರಾಜ್ ಎಲ್ಲಪ್ಪ ಬಿನ್ ಕೆಂಚಪ್ಪ, ಮಾರಿಯಮ್ಮ ಕೋಂ ರಾಮಣ್ಣ ಮತ್ತು ಮಣಿ ಇವರುಗಳು ದೇವಕಾತಿ ಕೊಪ್ಪ ಗ್ರಾಮದ ಸ. ನಂ.1 ರಲ್ಲಿ 2-00 ಎಕರೆಯಂತೆ ಸುಮಾರು 15 ವರ್ಷಗಳಿಂದ ಬಗರ್ ಹುಕುಂ ಸಾಗುವಳಿ ಮಾಡುತ್ತಾ ಬಂದಿರುವುದಾಗಿ, ಇದರ ಬಾಬು T.T ಬರೆಸಿಕೊಡಬೇಕೆಂದು ಕೊಟ್ಟ ಅರ್ಜಿ ಸಂಗತಿಯನ್ನು ತಾರೀಕು 14/10/96 ರಂದು ಸ್ಥಳ ತನಿಖೆಗೆ ಒಂದ ತಹಸೀಲ್ದಾರ್ ಸಾಹೇಬರ ಮುಖಾಂತರ ತಿಳಿದುಕೊಂಡಿರುತ್ತೇನೆ.

ಈ ಮೇಲ್ಕಂಡವರು ನಮ್ಮ ಗ್ರಾಮದ ವಾಸಿಗಳಾಗಿದ್ದು, ಸದ್ರಿಯವರುಗಳು ದೇವಕಾತಿಕೊಪ್ಪ ಗ್ರಾಮದ ಸ. ನಂ. 1 ರಲ್ಲಿ ನಾಲ್ಕು ಜನಗಳಿಂದ ವಿಲ್ ಸನ್, ಲಕ್ಷ್ಮಣ, ಎಲ್ಲಮ್ಮ, ಮಾರಿಯಮ್ಮ ಇವರುಗಳು ತಲಾ 2-00 ಎಕರೆಯಂತೆಯ ಮತ್ತು N ಮಣಿ ಯವರು ಸ.ನಂ. 2ರಲ್ಲಿ ಖುಷಿ 1 ಎಕರೆ ಜಮೀನನ್ನು ಇವರು ೧೫ ವರ್ಷಗಳಿಂದಲೂ ಬಗರ್ ಹುಕುಂ ಸಾಗುವಳಿ ಮಾಡಿಕೊಂಡು ಬಂದಿರುತ್ತಾರೆ. ಕಾರಣ ಸದ್ರಿಯವರಿಗೆ ಜಾಮೀನು ಮಂಜೂರು ಅಥವಾ ಟಿ.ಟಿ ಹಾಕಿಸಿಕೊಡಬೇಕೆಂದು ಇದರ ಬಗ್ಗೆ ಗ್ರಾಮಸ್ಥರುಗಳಾದ ನಮ್ಮಗಳಿಂದ ಯಾವ ತರಹದ ತಂಟೆ ತಕರಾರು ಇರುವುದಿಲ್ಲವೆಂದು ಹೇಳಿ ಬೇರೆಯಿಸಿದ ಮಹಜರು.

ಓದಿಸಿ, ಕೇಳಿ, ಒಪ್ಪಿ, ರುಜುಮಾಡಿರುತ್ತೇವೆ

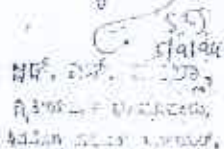
ಸಹಿ /-

ಸಹಿ /-

ತಹಸೀಲ್ದಾರ್
ಶಿವಮೊಗ್ಗ ತಾಲೂಕು,
ಶಿವಮೊಗ್ಗ


"TRUE COPY"

1797



V.A. Kuznetsov, 1905, 1906, 1907, 1908, 1909, 1910, 1911, 1912, 1913, 1914, 1915, 1916, 1917, 1918, 1919, 1920, 1921, 1922, 1923, 1924, 1925, 1926, 1927, 1928, 1929, 1930, 1931, 1932, 1933, 1934, 1935, 1936, 1937, 1938, 1939, 1940, 1941, 1942, 1943, 1944, 1945, 1946, 1947, 1948, 1949, 1950, 1951, 1952, 1953, 1954, 1955, 1956, 1957, 1958, 1959, 1960, 1961, 1962, 1963, 1964, 1965, 1966, 1967, 1968, 1969, 1970, 1971, 1972, 1973, 1974, 1975, 1976, 1977, 1978, 1979, 1980, 1981, 1982, 1983, 1984, 1985, 1986, 1987, 1988, 1989, 1990, 1991, 1992, 1993, 1994, 1995, 1996, 1997, 1998, 1999, 2000, 2001, 2002, 2003, 2004, 2005, 2006, 2007, 2008, 2009, 2010, 2011, 2012, 2013, 2014, 2015, 2016, 2017, 2018, 2019, 2020, 2021, 2022, 2023, 2024, 2025, 2026, 2027, 2028, 2029, 2030, 2031, 2032, 2033, 2034, 2035, 2036, 2037, 2038, 2039, 2040, 2041, 2042, 2043, 2044, 2045, 2046, 2047, 2048, 2049, 2050, 2051, 2052, 2053, 2054, 2055, 2056, 2057, 2058, 2059, 2060, 2061, 2062, 2063, 2064, 2065, 2066, 2067, 2068, 2069, 2070, 2071, 2072, 2073, 2074, 2075, 2076, 2077, 2078, 2079, 2080, 2081, 2082, 2083, 2084, 2085, 2086, 2087, 2088, 2089, 2090, 2091, 2092, 2093, 2094, 2095, 2096, 2097, 2098, 2099, 2100, 2101, 2102, 2103, 2104, 2105, 2106, 2107, 2108, 2109, 2110, 2111, 2112, 2113, 2114, 2115, 2116, 2117, 2118, 2119, 2120, 2121, 2122, 2123, 2124, 2125, 2126, 2127, 2128, 2129, 2130, 2131, 2132, 2133, 2134, 2135, 2136, 2137, 2138, 2139, 2140, 2141, 2142, 2143, 2144, 2145, 2146, 2147, 2148, 2149, 2150, 2151, 2152, 2153, 2154, 2155, 2156, 2157, 2158, 2159, 2160, 2161, 2162, 2163, 2164, 2165, 2166, 2167, 2168, 2169, 2170, 2171, 2172, 2173, 2174, 2175, 2176, 2177, 2178, 2179, 2180, 2181, 2182, 2183, 2184, 2185, 2186, 2187, 2188, 2189, 2190, 2191, 2192, 2193, 2194, 2195, 2196, 2197, 2198, 2199, 2200, 2201, 2202, 2203, 2204, 2205, 2206, 2207, 2208, 2209, 2210, 2211, 2212, 2213, 2214, 2215, 2216, 2217, 2218, 2219, 2220, 2221, 2222, 2223, 2224, 2225, 2226, 2227, 2228, 2229, 2230, 2231, 2232, 2233, 2234, 2235, 2236, 2237, 2238, 2239, 2240, 2241, 2242, 2243, 2244, 2245, 2246, 2247, 2248, 2249, 2250, 2251, 2252, 2253, 2254, 2255, 2256, 2257, 2258, 2259, 2260, 2261, 2262, 2263, 2264, 2265, 2266, 2267, 2268, 2269, 2270, 2271, 2272, 2273, 2274, 2275, 2276, 2277, 2278, 2279, 2280, 2281, 2282, 2283, 2284, 2285, 2286, 2287, 2288, 2289, 2290, 2291, 2292, 2293, 2294, 2295, 2296, 2297, 2298, 2299, 2300, 2301, 2302, 2303, 2304, 2305, 2306, 2307, 2308, 2309, 2310, 2311, 2312, 2313, 2314, 2315, 2316, 2317, 2318, 2319, 2320, 2321, 2322, 2323, 2324, 2325, 2326, 2327, 2328, 2329, 2330, 2331, 2332, 2333, 2334, 2335, 2336, 2337, 2338, 2339, 2340, 2341, 2342, 2343, 2344, 2345, 2346, 2347, 2348, 2349, 2350, 2351, 2352, 2353, 2354, 2355, 2356, 2357, 2358, 2359, 2360, 2361, 2362, 2363, 2364, 2365, 2366, 2367, 2368, 2369, 2370, 2371, 2372, 2373, 2374, 2375, 2376, 2377, 2378, 2379, 2380, 2381, 2382, 2383, 2384, 2385, 2386, 2387, 2388, 2389, 2390, 2391, 2392, 2393, 2394, 2395, 2396, 2397, 2398, 2399, 2400, 2401, 2402, 2403, 2404, 2405, 2406, 2407, 2408, 2409, 2410, 2411, 2412, 2413, 2414, 2415, 2416, 2417, 2418, 2419, 2420, 2421, 2422, 2423, 2424, 2425, 2426, 2427, 2428, 2429, 2430, 2431, 2432, 2433, 2434, 2435, 2436, 2437, 2438, 2439, 2440, 2441, 2442, 2443, 2444, 2445, 2446, 2447, 2448, 2449, 2450, 2451, 2452, 2453, 2454, 2455, 2456, 2457, 2458, 2459, 2460, 2461, 2462, 2463, 2464, 2465, 2466, 2467, 2468, 2469, 2470, 2471, 2472, 2473, 2474, 2475, 2476, 2477, 2478, 2479, 2480, 2481, 2482, 2483, 2484, 2485, 2486, 2487, 2488, 2489, 2490, 2491, 2492, 2493, 2494, 2495, 2496, 2497, 2498, 2499, 2500, 2501, 2502, 2503, 2504, 2505, 2506, 2507, 2508, 2509, 2510, 2511, 2512, 2513, 2514, 2515, 2516, 2517, 2518, 2519, 2520, 2521, 2522, 2523, 2524, 2525, 2526, 2527, 2528, 2529, 2530, 2531, 2532, 2533, 2534, 2535, 2536, 2537, 2538, 2539, 2540, 2541, 2542, 2543, 2544, 2545, 2546, 2547, 2548, 2549, 2550, 2551, 2552, 2553, 2554, 2555, 2556, 2557, 2558, 2559, 2560, 2561, 2562, 2563, 2564, 2565, 2566, 2567, 2568, 2569, 2570, 2571, 2572, 2573, 2574, 2575, 2576, 2577, 2578, 2579, 2580, 2581, 2582, 2583, 2584, 2585,

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TRUE COPY

36

Typed copy of Annexure-G
(Relevant portion)

ಗ್ರಾಮ: ದೇವಕಾತಿ ಕೊಪ್ಪ

ಹೋಬಳಿ: ಕಸಬಾ

ತಾಲೂಕು: ಶಿವಮೊಗ್ಗ

ರೀ.ಸ.ನಂ. ೧ ರಲ್ಲಿ ಬಗರ್ ಹುಕುಂ ಸಾಗುವಳಿದಾರರ ಬಾಬು ಸ್ಕೆಚ್

ದ್ವಿತೀಯ ದರ್ಜೆ,
ಭೂಮಾಪಕರು,
ಶಿವಮೊಗ್ಗ, ತಾಲೂಕು
ಸರ್ವೇಯರ್.

ಅ. ನಂ.	ಬಗರ್ ಹುಕುಂ ಸಾಗುವಳಿ ದಾರರ ಹೆಸರು	ಸ. ನಂ.	ಅಂದಾಜು ಎಸ್ಟೀಮೇಟ್	ವಿಸ್ತೀರ್ಣ ಖರಾಬು	ಬಾಕಿ
1	ಶ್ರೀ ಲಕ್ಷ್ಮಣ ಬಿನ್ ಚೊಬ್ಬು	1	1-35	0-0	1-35
2	ವಿಲ್ ಸನ್ ಬಿನ್ ದಾಸ್	1	2-00	0-6	1-34
3	ಮೆಲ್ಲಪ್ಪ ಬಿನ್ ಕೆಂಚಪ್ಪ	1	3-10	1-10	2-00
4	ಶ್ರೀಮತಿ ಮಂಜುಳಾ ಕೋಂ ಕುಮಾರ	1	3-00	2-00	1-00
5	ಶ್ರೀ ರಾಮಣ್ಣ ಬಿನ್ ಸಂತಪ್ಪ	1	1-00	0-00	1-00
6	ರಾಮಣ್ಣ ಬಿನ್ ಕಂಬಿಯಣ್ಣ	1	2-00	0-00	2-00
7	ಜಯಪ್ಪ ಬಿನ್ ಈರಪ್ಪ	1	1-05	0-00	1-05
			14-10	3-16	10-34

VA ದೇವಕಾತಿ ಕೊಪ್ಪ ರವರಿಗೆ ಅಡಿಯಲ್ಲಿ ಸಹಕರಿಸಿದೆ
ಅಂದಾಜು ಸ್ಕೆಚ್ ತಯಾರಿಸಿದೆ.


"TRUE COPY"

- 37 -

ANNEXURE: H

ದಿನಾಂಕ:-31-10-02ರಂದು ನಡೆದ 9ನೇ ಸಭೆಯಲ್ಲಿ ಈ ಕೆಳಕಂಡಂತಿರುವ ವಿಷಯಗಳನ್ನು ಚರ್ಚಿಸಿ ಸಂಪರ್ಕಿಸಿದ ಸಮಿತಿಯು ವರದಿಗಳನ್ನು

ಹಾಜರಾತಿ - 5 ಜನ

ಗೈರು ಹಾಜರಿ - ಇಲ್ಲ

1101

1106

1111

1110

ಕನಕಾ - 2ನೇ ಮೇಲ್ಮನೆ ಗೆಲುವಿನಲ್ಲಿ, ದೇವಕಾತಿ ಕೊಪ್ಪ - ನಗರ, ಕೊಪ್ಪಳ ಜಿಲ್ಲೆಯಲ್ಲಿ
ಮೇಲ್ಮನೆಗಳನ್ನು, ಮೇಲ್ಮನೆಗಳನ್ನು, ಗುಂಡುಮೇಲ್ಮನೆ, ಸಿಬ್ಬಂದಿ, ತಾತ್ಕಾಲಿಕ ಕೊಪ್ಪಳ
ಮತ್ತು, ತಾತ್ಕಾಲಿಕ ಕೊಪ್ಪಳ, ಗುಂಡುಮೇಲ್ಮನೆ ಕಡತ ಸಂಖ್ಯೆ 1, 2, 4, 5, 6, 7, 8, 12, 13,
17, 18, 21, 22, 23, 24, 25, 32, 37, 40, 48, 49, 51, 52, 56, 59, 62, 64,
66, 69, 69:ಎ, 76, 77, 86, 101, 103, 105, 107, 108, 109, 111, 112, 113,
114, 116, 120, 70:ಎ, 72, 74, 82, 84, 85, 99:2000 ಬಗ್ಗೆ

ಈ ಕೆಳಕಂಡ ವಿಷಯಗಳನ್ನು ಕುರಿತು ವಿಷಯಗಳನ್ನು ಕುರಿತು ವಿವರಿಸಿದ -
ನಗರವ್ಯಾಪ್ತಿಯಿಂದ 5 ಕಿ ಮೀ ವ್ಯಾಪ್ತಿಯಲ್ಲಿರುವ ಬದುಕಿರುವ, ಅರ್ಜಿಗಳನ್ನು ಸಕ್ರಮ
ಗುಣಿಸಲು ಅವಕಾಶವಿಲ್ಲದ ಕಾರಣ ಅರ್ಜಿಗಳನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿದೆ.

ಕ್ರ:ಸಂ:	ಗ್ರಾಮ	ನ:ನಂ:	ಅರ್ಜಿಗಳ ಸಂಖ್ಯೆ	ವಿಸ್ತೀರ್ಣ	ಹರಾ
1101	12 ದೇವಕಾತಿ ಕೊಪ್ಪಳ	1101	1	11-00	-
1111		1110	3	11-00	-
			1101	1101	

ಸಹಿ
ಸದಸ್ಯರುಗಳು

ಸಹಿ
ಸದಸ್ಯ:ಕಾರ್ಯದರ್ಶಿ

ಸಹಿ
ಅಧ್ಯಕ್ಷರು
ಅಧ್ಯಕ್ಷರ ಅಧಿಕಾರವು ಸಕ್ರಮ
ನಿರ್ದಿಷ್ಟ, ವಿವರಿಸಿದ ಕಾರಣ:

No. L-10(2) 25/10/02-03

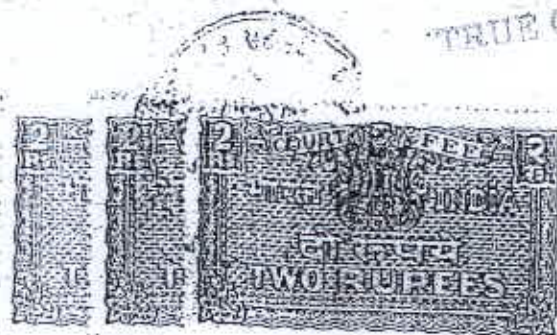
- - ಯಥಾ ಸಕಲು - -

ಅಧ್ಯಕ್ಷರ ಅಧಿಕಾರವು ಸಕ್ರಮ
ನಿರ್ದಿಷ್ಟ, ವಿವರಿಸಿದ ಕಾರಣ:
31/10/02
16/11/02
16/11/02

ಅಧ್ಯಕ್ಷರ ಅಧಿಕಾರವು ಸಕ್ರಮ
ನಿರ್ದಿಷ್ಟ, ವಿವರಿಸಿದ ಕಾರಣ:
(6/11/02)

TRUE COPY

TRUE COPY



38

Typed copy Annexure-H

ದಿನಾಂಕ 31.10.02 ರಂದು ನಡೆದ ಶಿವಮೊಗ್ಗ ತಾಲ್ಲೂಕು ಅನಧಿಕೃತ ಜಾಮೀನು ಸಕ್ರಮೀಕರಣ ಸಮಿತಿಯ ನಡವಳಿಕೆಗಳು.

ಹಾಜರಾತಿ -5 ಜನ

ಗೈರು ಹಾಜರಿ ಇಲ್ಲ

ಕಸಬಾ 2 ನೇ ಹೋಬಳಿ, ಗೆಜ್ಜಿನ ಹಳ್ಳಿ, ದೇವಕಾತಿ ಕೊಪ್ಪ, ನವಿಲೇ, ಕೋಟೆ ಗಂಗೂರು, ಸೋಮಿನಕೊಪ್ಪ, ಬೊಮ್ಮನಕಟ್ಟೆ, ಗೋಂದಿಚಾಟ್ಟು ಹಳ್ಳಿ, ಸಿದ್ದಿಪುರ, ತ್ಯಾವರಕೊಪ್ಪ, ಮತ್ತು ತ್ಯಾವರ ಚಾಟ್ಟು ಹಳ್ಳಿ ಗ್ರಾಮಗಳ ಕಡತ ಸಂಖ್ಯೆ 1, 2, 4, 5, 6, 7, 8, 12, 13, 17, 18, 21, 22, 23, 24, 25, 32, 37, 40, 48, 49, 51, 52, 56, 59, 62, 64, 66 69 69 A, 76, 77, 86, 101, 103, 105, 107, 108, 109, 111, 112, 113, 114, 116, 120, 78, 72, 74, 82, 84, 85, 99, 200 ಬಗ್ಗೆ ಈ ಕೆಳಕಂಡ ಜಾಮೀನುಗಳು ಹಿಡುವಳಿ ಜಾಮೀನುಗಳಾಗಿದ್ದು ಶಿವಮೊಗ್ಗ- ನಗರ ವ್ಯಾಪ್ತಿಯಿಂದ 3 ಕಿ. ಮೀ ವ್ಯಾಪ್ತಿಯೊಳಗೆ ಬರುತ್ತಿದ್ದು ಅರ್ಜಿಗಳನ್ನು ಸಕ್ರಮ ಗೊಳಿಸಲು ಅವಕಾಶವಿಲ್ಲದ ಕಾರಣ ಅರ್ಜಿಗಳನ್ನು ವಜಾ ಮಾಡಲಾಗಿದೆ.

ಕ್ರ: ಸಂ	ಗ್ರಾಮ	ಸ. ನಂ	ಅರ್ಜಿಗಳ ಸಂಖ್ಯೆ	ವಿಸ್ತೀರ್ಣ	ಷರಾ
12	ದೇವಕಾಟಿಕೊಪ್ಪ	1	3	11-00	

ಸಹಿ/-
ಸದಸ್ಯರುಗಳು

ಸಹಿ/-
ಸದಸ್ಯ ಕಾರ್ಯದರ್ಶಿ

ಸಹಿ/-
ಅಧ್ಯಕ್ಷರು ಅನಧಿಕೃತ ಜಾಮೀನು ಸಕ್ರಮೀ ಸಮಿತಿ, ಶಿವಮೊಗ್ಗ ತಾ

ತಹಸೀಲ್ದಾರ್
ಶಿವಮೊಗ್ಗ ತಾಲ್ಲೂಕು

TRUE COPY



ANNEXURE: J

39

ಶಿವಮೊಗ್ಗ ಜಿಲ್ಲಾ ಪಂಚಾಯತ್, ಶಿವಮೊಗ್ಗ ಉಪ ವಿಭಾಗ,

ಉಪಸ್ಥಿತರು: ಎಂ.ಎಲ್. ವೈಕಾರಿ, ಕೆ.ಎ.ಎಸ್.,
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿ,
ಶಿವಮೊಗ್ಗ ಉಪ ವಿಭಾಗ

ಮೇಲ್ಕನವಿದಾರರು: ವಾದಿಗಳು:
ಲಕ್ಷ್ಮಣ, ಬಾಬು, ಪಟ್ಟರ್
ಬಿನ್ ಬಾಬು ಬಿ. ಪಟ್ಟರ್
ದೇವಕಾಶಿಕೊಪ್ಪ ವಾಸಿ,
ಶಿವಮೊಗ್ಗ ತಾಲ್ಲೂಕು.

ವಿ ಪ್ರತಿವಾದಿಗಳು: ಅಕ್ಷೇಪಣೆದಾರರು:
ರು ತಹಶೀಲ್ದಾರ್,
ಶಿವಮೊಗ್ಗ ತಾಲ್ಲೂಕು

ಬಿ.ಬಿ. ಶಿವಮೂರ್ತಿ-ವಕೀಲರು,
ಅವರಿಂದ
ಪ್ರಸ್ತಾವನೆ

ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ಅಧಿನಿಯಮ 1964 ರ ಕಲಂ 49 ರನ್ವಯ ವಾದಿಗಳು ಶಿವಮೊಗ್ಗ ತಾಲ್ಲೂಕು ದೇವಕಾಶಿಕೊಪ್ಪ ಗ್ರಾಮದ ಸ.ನಂ. 1ರ ಜಮೀನಿಗೆ (ವಿವಾದಿತ ಭೂಮಿ) ಸಂಬಂಧಿಸಿದಂತೆ ತಾಲ್ಲೂಕು ಬಗರ್ ಹುಕುಂ ಸಕ್ರಮ ಸಮಿತಿ-ಕೈಗೊಂಡ ದಿನಾಂಕ: 31-10-2002 ರ ನಿರ್ಣಯದಡಿ (ಡಿ: 16-04-03 ರಲ್ಲಿ ಪಡೆದ ಪ್ರತಿ-ಪ್ರಶ್ನಿತ ಆಡೇಶ) ಕ್ರಮಬದ್ಧತೆಯನ್ನು ಪ್ರಶ್ನಿಸಿ ಈ ಮೇಲ್ಕನವಿಯನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ. ಪ್ರಕರಣವನ್ನು ವಿಚಾರಣೆಗೆ ಕೈಗೆತ್ತಿಕೊಂಡಿದ್ದು, ವಿವಿಧ ದಿನಾಂಕಗಳಂದು ಪ್ರಕರಣ ನಡೆದು ದಿ: 13-4-2010 ರಂದು ವಿಚಾರಣೆಗೆ ಬಂದಾಗ ವಾದಿಗಳ ಪರ ವಕೀಲರು ಹಾಜರಿದ್ದು, ತಮ್ಮ ವಾದವನ್ನು ಮಂಡಿಸಿದ್ದು, ಪ್ರಕರಣವನ್ನು ಆದೇಶಕ್ಕೇದು ಗೊತ್ತುಪಡಿಸಿದ್ದು, ನಂತರ ದಾಖಲೆಗಳನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.

ವಾದಿಗಳ ಪರ ವಕೀಲರು ತಮ್ಮ ವಾದದಲ್ಲಿ, ವಾದಿಗಳು ದೇವಕಾಶಿಕೊಪ್ಪ ಗ್ರಾಮದ ಸ.ನಂ. 1 ರಲ್ಲಿ 2-00 ಏಕರ ಜಮೀನನ್ನು 20 ವರ್ಷಗಳಿಗೂ ಹಿಂದಿನಿಂದಲೂ ಅನಧಿಕೃತವಾಗಿ ಸಾಗುವಳಿ ಮಾಡಿಕೊಂಡು ಬಂದಿದ್ದು ಬಹಳಷ್ಟು ಕ್ರಮದಿಂದ ಮತ್ತು ಹಣ ಖರ್ಚು ಮಾಡಿ ಸದರಿ ಜಮೀನನ್ನು ಅಭಿವೃದ್ಧಿಪಡಿಸಿದ್ದು, ಆ ಮೇರೆಗೆ ಸದರಿ ಜಮೀನನ್ನು ಸಕ್ರಮಗೊಳಿಸಿ ಕೊಡುವಂತೆ ಪ್ರತಿವಾದಿಗಳಿಗೆ 1991ನೇ ಸಾಲಿನಲ್ಲಿ ಆರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ಅಲ್ಲದೇ ವಾದಿಗಳು ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಮಂಗಳೂರು ಹೆಂಚಿನ ಮನೆಯೊಂದನ್ನು ಕಟ್ಟಿದ್ದು, ಸದರಿ ಮನೆಗೆ ಕೋಟಿಗಂಗೂರು ಮಂಡಲ ಪಂಚಾಯತಿ ದಾಖಲೆಗಳಲ್ಲಿ ಖಾತೆ ಸಹ ದಾಖಲಾಗಿದ್ದು ಕಂದಾಯ ಸಹ ಪಾವತಿ ಮಾಡುತ್ತಿರುವುದಾಗಿ ತಿಳಿಸಿರುತ್ತಾರೆ. ಮುಂದುವರಿದು, ವಾದಿಗಳು ಆರ್ಜಿ ಸಲ್ಲಿಸಿದ ಮೇರೆಗೆ ಕಂದಾಯ ಇಲಾಖಾ ಅಧಿಕಾರಿಗಳು ಸ್ಥಳ

Pdrc(gov)

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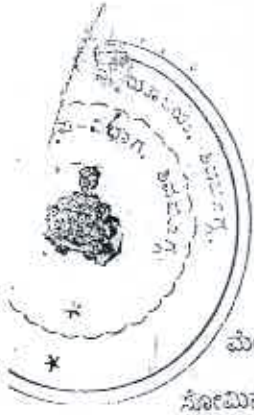
- 2 -

ಮಹಜರನ್ನು ಕೂಡ ನಡೆಸಿದ್ದು, ಅದರಂತೆ ವಾದಿಗಳು ಸದರಿ ಜಮೀನಿನ ಸ್ವಾಧೀನವನ್ನು ಪಡೆದುಕೊಂಡು ಬಂದಿರುವುದಾಗಿಯೂ, ಆದರೆ ಪ್ರತಿವಾದಿ ಪ್ರಾಧಿಕಾರವು ಇದ್ದು, ವಜಾ ಮಾಡುವುದು ಪರಿಗಣನೆಗೆ ತೆಗೆದುಕೊಳ್ಳಬೇಕೆಂದು ಸದರಿ ಜಮೀನು ನಗರಸಭೆಯ 5 ಕಿ.ಮೀ ಒಳಗೆ ಬರುತ್ತದೆ ಎಂಬ ಕಾರಣಕ್ಕಾಗಿ ವಾದಿಗಳ ಅರ್ಜಿಯನ್ನು ವಜಾ ಮಾಡಿದ್ದಾಗಿಯೂ, ಆದರೆ ಪ್ರಾಧಿಕಾರವು ಈ ರೀತಿ ಅಭಿಪ್ರಾಯಕ್ಕೆ ಬರುವ ಮುನ್ನ, ಈ ರೀತಿ ಮಿತಿಯೂ ನಗರಸಭೆಯ ಪ್ರದೇಶ ಭಾಗದಿಂದ ಬರುತ್ತದೆಯೇ? ಅಥವಾ ನಗರಸಭೆಯ ಗಡಿಯಿಂದ ಬರುತ್ತದೆಯೇ? ಎಂಬ ವಿಷಯದಲ್ಲಿ ಸರಿಯಾದ ನಿರ್ಧಾರಕ್ಕೆ ಬಾರದೇ, ವಾದಿಗಳು ಸದರಿ ಜಮೀನಿನ ಅನಧಿಕೃತ ಸಾಗುವಳಿಯಲ್ಲಿರುವ ವಿವರವನ್ನು ಪರಿಗಣನೆಗೆ ತೆಗೆದುಕೊಳ್ಳಬೇಕೆಂದು ಅರ್ಜಿಯನ್ನು ತಿರುಸ್ಕರಿಸಿದ್ದು, ಇದು ಕಾನೂನು ಬಾಹಿರವಾದುದರಿಂದ ಪ್ರಶ್ನಿತ ಆದೇಶವನ್ನು ಬದಿಗೊತ್ತಬೇಕಾಗಿ ಕೇಳಿಕೊಂಡಿರುತ್ತಾರೆ.

ಈ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ವಾದಿಗಳ ಕೋರಿಕೆ ಬಗ್ಗೆ ಪರಿಶೀಲನೆ ನಡೆಸಬೇಕಾಗಿರುತ್ತದೆ. ವಾದಿಗಳು ವಿವಾದಿತ ಸರ್ವೆ ನಂಬರಿನಲ್ಲಿ 2-00 ಎಕರೆ ಜಮೀನು ಸಕ್ರಮಾತಿ ಕೋರಿ ಸಮೂಹ-53 ರಲ್ಲಿ ತಹಶೀಲ್ದಾರರಿಗೆ ದಿ: 18-12-98 ರಲ್ಲಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ಶಿವಮೊಗ್ಗ ತಾಲ್ಲೂಕು ಅನಧಿಕೃತ ಜಮೀನು ಸಕ್ರಮೀಕರಣ ಸಮಿತಿಯು ತನ್ನ ದಿ: 31-10-2002 ರ ನಿರ್ಣಯದಲ್ಲಿ (ಕ್ರ.ಸಂ.12 ರಲ್ಲಿ) ವಿವಾದಿತ ಜಮೀನು ಶಿವಮೊಗ್ಗ ನಗರಸಭೆಯ ವ್ಯಾಪ್ತಿಯಿಂದ 5 ಕಿ.ಮೀ ಒಳಗೆ ಬರುತ್ತಿದ್ದು, ಸದರಿ ಜಮೀನು ಸಕ್ರಮಗೊಳಿಸಲು ಅವಕಾಶವಿಲ್ಲದ ಕಾರಣ ಸಕ್ರಮಾತಿ ಕೋರಿ ಸಲ್ಲಿಸಿದ ಅರ್ಜಿಯನ್ನು ವಜಾ ಮಾಡಲು ತೀರ್ಮಾನ ಕೈಗೊಂಡಿರುತ್ತದೆ.

ಈ ಬಗ್ಗೆ ಇರುವ ಮಾರ್ಗಸೂಚಿಯನ್ವಯ (ಕಾಯಿದೆಯ ಕಲಂ 94ಎ (4)) ನಗರಸಭೆ ಗಡಿಯಿಂದ (ಮಿತಿಯಿಂದ) 5 ಕಿ.ಮೀ ಒಳಗೆ ಬರುವ ಭೂಮಿಯನ್ನು ಸಕ್ರಮಗೊಳಿಸಲು ಅವಕಾಶವಿರುವುದಿಲ್ಲ. ವಾದಿಗಳು ಲೋಕೋಪಯೋಗಿ ಇಲಾಖೆಯಿಂದ ಶಿವಮೊಗ್ಗ ನಗರದಿಂದ ದೇವಕಾಂತಿಕೊಪ್ಪ ಗ್ರಾಮದ ವರೆಗೆ ಇರುವ ದೂರದ ವಿವರಗಳನ್ನು ಪಡೆದು ಪಾಟುಪಡಿಸಿದ್ದು, ಅದರ ವಿವರ ಕೆಳಕಂಡಂತಿದೆ.

1.	ಸಹಾಯಕ ಕಾರ್ಯಪಾಲಕ ಇಂಜಿನಿಯರ್, ನಂ. 1 ಲೋಕೋಪಯೋಗಿ ಇಲಾಖೆ, ಶಿವಮೊಗ್ಗ ಇವರ ಪತ್ರ ಸಂ. ದೂರದ ಸರ್ವೆಪೀಕೆಟ್ ದೃಢೀಕರಣ 381/1-09-2005	ಶಿವಮೊಗ್ಗದ ಲಕ್ಷ್ಮೀಪಾಕೇಶ್ ನಿಂದ ದೇವಕಾಂತಿಕೊಪ್ಪ ಗ್ರಾಮಕ್ಕೆ ಇರುವ ದೂರ	7.50 ಕಿ.ಮೀ
2.	ಡಿ.ಎಂ ದೂರದ ಪತ್ರ 2007-08/120-4 ದಿ: 5-06-07	ಶಿವಮೊಗ್ಗದ ಲಕ್ಷ್ಮೀಪಾಕೇಶ್ ನಿಂದ ಶಿವಮೊಗ್ಗ ನಗರಸಭೆಯ ವ್ಯಾಪ್ತಿಯ ಸೋಮನಕೊಪ್ಪ ದ ವರೆಗೆ (-)	3.30 ಕಿ.ಮೀ
	ಶಿವಮೊಗ್ಗ ನಗರಸಭೆ ವ್ಯಾಪ್ತಿಯ ಸೋಮನಕೊಪ್ಪದಿಂದ ದೇವಕಾಂತಿಕೊಪ್ಪ ಗ್ರಾಮಕ್ಕೆ ಇರುವ ದೂರ (ಅಂ)		4.20 ಕಿ.ಮೀ



- 3 -

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ಮೇಲ್ಕಂಡ ಇರುವ ದೂರವು ಒಂದು ಸ್ಥಳದಿಂದ ಲೆಕ್ಕಕ್ಕೆ ತೆಗೆದುಕೊಂಡಿದ್ದು, ಒಂದು ವೇಳೆ ಸೋಮನಹೊಪ್ಪ ಗ್ರಾಮದ ಗಡಿಯಿಂದ ನಿರ್ದಿಷ್ಟವಾಗಿ ಲೆಕ್ಕಕ್ಕೆ ತೆಗೆದುಕೊಂಡಿದ್ದಲ್ಲಿ ಶಿವಮೊಗ್ಗ ನಗರಪಟ್ಟಣದ ಗಡಿಯಿಂದ ದೇವಕಾಕಿಹೊಪ್ಪ ಗ್ರಾಮದ ಅಂತರ 4.20 ಕಿಮೀ ನಿಂದ ಕಡಿಮೆ ಇರುವ ಸಂಭವವಿರುತ್ತದೆ. ಇದರಿಂದಾಗಿ ವಾದಿಗಳು ಸಾಗು ಮಾಡಿದ ಜಮೀನು ಶಿವಮೊಗ್ಗ ನಗರಪಟ್ಟಣದ ಗಡಿಯಿಂದ 5 ಕಿಮೀ ಒಳಗೆ ಇದ್ದು ನಿಯಮಗಳ ಪ್ರಕಾರ ಮಂಜೂರು ಮಾಡಲು ಅಧಿಕಾರವಿರುವುದಿಲ್ಲ. ಹೀಗಾಗಿ ತಾಲ್ಲೂಕು ಅನಧಿಕೃತ ಜಮೀನು ಸಕ್ರಮಿಕರಣ ಸಮಿತಿಯು ದಿನಾಂಕ: 31-10-2002 ರಲ್ಲಿ ಕೈಗೊಂಡ ನಿರ್ಣಯವು ಕ್ರಮಬದ್ಧವಾಗಿರುತ್ತದೆ. ಮತ್ತು ಸದರಿ ನಿರ್ಣಯದಲ್ಲಿ ಈ ಸ್ವಾಯಂಶಾಸನ ಮಧ್ಯೆ ಪ್ರವೇಶಿಸುವ ಅವಶ್ಯಕತೆ ಕಂಡು ಬಂದಿರುವುದಿಲ್ಲ. ಅದರಂತೆ ಈ ಆದೇಶ

ಆ ದೇಶ

ಮೇಲ್ಕಂಡ ಕಾರಣಗಳಿಂದ ಮೇಲ್ಕನವಿಯನ್ನು ವಜಾ ಮಾಡಿದೆ.

ಈ ಆದೇಶವನ್ನು ಹೇಳಿ ಬರೆಯಿಸಿ, ಬೆರಳಚ್ಚು ಮಾಡಿರುವುದನ್ನು ಪರಿಶೀಲಿಸಿ, ಪರಿಷ್ಕರಿಸಿ ದಿನಾಂಕ: 17-9-2010 ರಂದು ಸ್ವಾಯಂಶಾಸನದಲ್ಲಿ ಉದ್ಘೋಷಿಸಿದೆ.

(Signature)

(ವೈಕುಂಠ ಶರಣ್)

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿ

ಶಿವಮೊಗ್ಗ ಉಪ ವಿಭಾಗ, ಶಿವಮೊಗ್ಗ

ದಿನ 17-9-2010

ಸಾರಿಗೆ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ 11-10

ನೋಂದಣಿ

(Signature)

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಯವರು

ಶಿವಮೊಗ್ಗ ಉಪ ವಿಭಾಗ, ಶಿವಮೊಗ್ಗ

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Typed copy of Annexure-J

ಉಪ-ವಿಭಾಗಾಧಿಕಾರಿಗಳ ನ್ಯಾಯಾಲಯ, ಶಿವಮೊಗ್ಗ ಉಪ ವಿಭಾಗ,

ನಂ. ಆರ್. ಎ. 3/03-04

ಉಪಸ್ಥಿತರು: ಎಂ. ಎಲ್. ವೈಶಾಲಿ, ಕೆ.ಎ.ಎಸ್.,
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿ
ಶಿವಮೊಗ್ಗ ಉಪ ವಿಭಾಗ

ಮೇಲ್ಮನವಿದಾರರು: ವಾದಿಗಳು:

ಲಕ್ಷ್ಮಣ, ಬಾಬು, ಪಟ್ಟರ್

ಬಿನ್ ಬಾಬು ಬಿ ಪಟ್ಟರ್

ದೇವಕಾತಿಕೊಪ್ಪ ವಾಸಿ,

ಶಿವಮೊಗ್ಗ ತಾಲ್ಲೂಕ್

ವಿರುದ್ಧ

ಪ್ರತಿವಾದಿ

ಆಕ್ರೇಪಣೆದಾರರು

ತಹಸೀಲ್ದಾರ್, ಶಿವಮೊಗ್ಗ ತಾಲ್ಲೂಕು

ಬಿ.ಜಿ. ಶಿವಮೂರ್ತಿ - ವಕೀಲರು ಇವರಿಂದ

ಪ್ರಸ್ತಾವನೆ

ಕರ್ನಾಟಕ ಭೂಕಂದಾಯ ಅಧಿನಿಯಮ ೧೯೬೪ ರ ಕಲಂ ೪೯ ರನ್ವಯ
ವಾದಿಗಳು ಶಿವಮೊಗ್ಗ ತಾಲ್ಲೂಕು ದೇವಕಾತಿಕೊಪ್ಪ ಗ್ರಾಮದ ಸ. ನಂ. ೧ ರ
ಜಮೀನಿಗೆ (ವಿವಾದಿತ ಭೂಮಿ) ಸಂಬಂಧಿಸಿದಂತೆ ತಾಲ್ಲೂಕು ಬಗರ್ ಹುಕುಂ
ಸಕ್ರಮ ಸಮಿತಿ ಕೈಗೊಂಡ ದಿನಾಂಕ ೩೧.೧೦.೨೦೦೨ ರ ನಿರ್ಣಯದ (ದಿ:
೧೩.೦೪.೦೩ ರಲ್ಲಿ ಪಡೆದ ಪ್ರತಿ-ಪ್ರಶ್ನಿತ ಆದೇಶ) ಕ್ರಮಬದ್ಧತೆಯನ್ನು ಪ್ರಶ್ನಿಸಿ ಈ
ಮೇಲ್ಮನವಿಯನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ. ಪ್ರಕರಣವನ್ನು ವಿಚಾರಣೆಗೆ
ಕೈಗೆತ್ತಿಕೊಂಡಿದ್ದು, ವಿವಿಧ ದಿನಾಂಕಗಳಂದು ಪ್ರಕರಣ ನಡೆದು ದಿ.
೧೩.೦೪.೨೦೧೦ ರಂದು ವಿಚಾರಣೆಗೆ ಬಂದಾಗ ವಾದಿಗಳ ಪರ ವಕೀಲರು, ತಮ್ಮ

ವಾದವನ್ನು ಮಂಡಿಸಿದ್ದು, ಪ್ರಕರಣವನ್ನು ಆದೇಶಕ್ಕೊಂದು ಗೊತ್ತುಪಡಿಸಿ, ನಂತರ ದಾಖಲೆಯನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.

ವಾದಿಗಳ ಪರ ವಕೀಲರು ತಮ್ಮ ವಾದದಲ್ಲಿ, ವಾದಿಗಳು ದೇವಕಾತಿಕೊಪ್ಪ ಗ್ರಾಮದ ಸ. ನಂ.೧ ರಲ್ಲಿ ೨-೦೦ ಎಕರೆ ಜಮೀನನ್ನು ೨೦ ವರ್ಷಗಳಿಗೂ ಹಿಂದಿನಿಂದಲೂ ಅನಧಿಕೃತವಾಗಿ ಸಾಗುವಳಿ ಮಾಡಿಕೊಂಡು ಬಂದಿದ್ದು ಬಹಳಷ್ಟು ಶ್ರಮದಿಂದ ಮತ್ತು ಹಣ ಖರ್ಚು ಮಾಡಿ ಸದರಿ ಜಮೀನನ್ನು ಅಭಿವೃದ್ಧಿ ಪಡಿಸಿದ್ದು, ಆ ಮೇರೆಗೆ ಸದರಿ ಜಮೀನನ್ನು ಸಕ್ರಮ ಗೊಳಿಸಿ ಕೊಡುವಂತೆ ಪ್ರತಿವಾದಿಗಳಿಗೆ ೧೯೯೧ ನೇ ಸಾಲಿನಲ್ಲಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ಅಲ್ಲದೆ ವಾದಿಗಳು ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಮಂಗಳೂರು ಹೆಂಚಿನ ಮನೆಯೊಂದನ್ನು ಕಟ್ಟಿದ್ದು, ಸದರಿ ಮೇಲೆಗೆ ಕೋಟೆಗಂಗೂರು ಮಂಡಲ ಪಂಚಾಯತಿ ದಾಖಲೆಗಳಲ್ಲಿ ಖಾತೆ ಸಹ ದಾಖಲಾಗಿದ್ದು ಕಂದಾಯ ಸಹ ಪಾವತಿ ಮಾಡುತ್ತಿರುವುದಾಗಿ ತಿಳಿಸಿರುತ್ತಾರೆ. ಮುಂದುವರಿದು, ವಾದಿಗಳು ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ ಮೇರೆಗೆ ಕಂದಾಯ ಇಲಾಖಾ ಅಧಿಕಾರಿಗಳು ಸ್ಥಳ ಮಹಜರನ್ನು ಕೂಡ ನಡೆಸಿದ್ದು, ಅದರಂತೆ ವಾದಿಗಳು ಸದರಿ ಜಮೀನಿನ ಸ್ವಾಧೀನ ಹೊಂದಿರುವುದು ಕಂಡು ಬಂದಿರುವುದಾಗಿಯೂ, ಆದರೆ ಪ್ರತಿವಾದಿ ಪ್ರಾಧಿಕಾರವು ಇದ್ದಾವುದೇ ವಿಚಾರವನ್ನು ಪರಿಗಣನೆಗೆ ತೆಗೆದುಕೊಳ್ಳದೆ ಸದರಿ ಜಾಮೀನು ನಗರ ಸಭೆಯ ೫ ಕಿ.ಮೀ ಒಳಗೆ ಬರುತ್ತದೆ ಎಂಬ ಕಾರಣಕ್ಕಾಗಿ ವಾದಿಗಳ ಅರ್ಜಿಯನ್ನು ವಜಾ ಮಾಡಿದ್ದಾಗಿಯೂ, ಆದರೆ ಪ್ರಾಧಿಕಾರವು ಈ ರೀತಿ ಅಭಿಪ್ರಾಯಕ್ಕೆ ಬರುವ ಮುನ್ನ, ಈ ರೀತಿ ಮಿತಿಯು ನಗರ ಸಭೆಯ ಹೃದಯ ಭಾಗದಿಂದ ಬರುತ್ತದೆಯೇ? ಅಥವಾ ನಗರ ಸಭೆಯ ಗಡಿಯಿಂದ ಬರುತ್ತದೆಯೇ? ಎಂಬ ವಿಚಾರದಲ್ಲಿ ಸರಿಯಾದ ನಿರ್ಧಾರಣೆಗೆ ಭಾರದ, ವಾದಿಗಳು ಸದರಿ ಜಮೀನಿನ ಅನಧಿಕೃತ ಸಾಗುವಳಿಯಲ್ಲಿರುವ ವಿಚಾರವನ್ನು ಪರಿಗಣನೆಗೆ ತೆಗೆದುಕೊಳ್ಳದೆ ಅರ್ಜಿಯನ್ನು ತಿರಸ್ಕರಿಸಿದ್ದು, ಎಂದು ಕಾನೂನು ಬಾಹಿರವಾದುದ್ದರಿಂದ ಪ್ರಶ್ನಿತ ಆದೇಶವನ್ನು ಬದಿಗೊತ್ತಬೇಕಾಗಿ ಕೇಳಿಕೊಂಡಿರುತ್ತಾರೆ.

ಈ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ವಾದಿಗಳ ಕೋರಿಕೆ ಬಗ್ಗೆ ಪರಿಶೀಲನೆ ನಡೆಸಬೇಕಾಗಿರುತ್ತದೆ. ವಾದಿಗಳು ವಿವಾಧಿತ ಸರ್ವೇ ನಂಬರಿನಲ್ಲಿ ೨-೦೦ ಎಕರೆ ಜಾಮೀನು ಸಕ್ರಮತಿ ಕೋರಿ ನಮೂನೆ ೫೩ ರಲ್ಲಿ ತಹಸೀಲ್ದಾರರಿಗೆ ದಿ. ೧೮.೧೨.೯೮ ರಲ್ಲಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿತ್ತು. ಶಿವಮೊಗ್ಗ ತಾಲ್ಲೂಕು ಅನಧಿಕೃತ ಜಾಮೀನು ಜಾಮೀನು

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ಸಕ್ರಮೀಕರಣ ಸಮೀತಿಯು ತನ್ನ ಸಲ್ಲಿಸಿದ್ದು, ಶಿವಮೊಗ್ಗ ನಗರಸಭೆಯ ವ್ಯಾಪ್ತಿಯಿಂದ ೫ ಕಿಲೋಮೀಟರ್ ಒಳಗೆ ಬರುತ್ತಿದ್ದು, ಸದರಿ ಜಾಮೀನು ಸಕ್ರಮ ಗೊಳಿಸಲು ಅವಕಾಶವಿಲ್ಲದಕಾರಣ ಸಕ್ರಮಾತಿ ಕೋರಿ ಸಲ್ಲಿಸಿದ ಅರ್ಜಿಯನ್ನು ವಜಾ ಮಾಡಲು ತೀರ್ಮಾನ ಕೈಕೊಂಡಿರುತ್ತದೆ.

ಈ ಬಗ್ಗೆ ಏರುವ ಮಾರ್ಗಸೂಚಿಯನ್ವಯ (ಕಾಯ್ದೆ ಯಾ ಕಲಂ ೯೪ ಎ (೪) ನಗರ ಸಭೆ ಗಡಿಯಿಂದ (ಮಿತಿಯಿಂದ) ೫ ಕಿಲೋಮೀಟರ್ ಒಳಗೆ ಬರುವ ಭೂಮಿಯನ್ನು ಸಕ್ರಮ ಗೊಳಿಸಲು ಅವಕಾಶವಿರುವುದಿಲ್ಲ. ವಾದಿಗಳು ಲೋಕೋಪಯೋಗಿ ಇಲಾಖೆಯಿಂದ ಶಿವಮೊಗ್ಗ ನಗರದಿಂದ ದೇವಕಾತಿ ಕೊಪ್ಪ ಗ್ರಾಮದವರೆಗೆ ಇರುವ ದೂರದ ವಿವರಗಳನ್ನು ಪಡೆದು ಹಾಜರು ಪಡಿಸಿದ್ದು ಅದರ ವಿವರ ಕೆಳಕಂಡಂತಿದೆ.

1	ಸಹಾಯಕ ಕಾರ್ಯಪಾಲಕ ಎಂಜಿನಿಯರ್, ನಂ. ೧ ಲೋಕೋಪಯೋಗಿ ಇಲಾಖೆ ಶಿವಮೊಗ್ಗ ಇವರ ಪತ್ರ ನಂ. ದೂರದ ಸರ್ವೆಕ್ಷರ್‌ನ ದೃಢೀಕರಣ ೩೮೧/೧-೦೯-೨೦೦೫	ಶಿವಮೊಗ್ಗ ಲಕ್ಶ್ಮಿ ಟಾಕೀಸ್ ನಿಂದ ದೇವಕಾತಿ ಕೊಪ್ಪಕ್ಕಿರುವ ಗ್ರಾಮಕ್ಕೆ ಇರುವ ದೂರ	7.50 k. m
2	ಡಿ.ಎಂ ದೂರದ ಪತ್ರ ೨೦೦೭-೦೮/೧೨೦-೦೪ ದಿ. ೦೫-೦೭-೦೭	ಶಿವಮೊಗ್ಗ ಡಾ ಲಕ್ಶ್ಮಿ ಟಾಕೀಸ್ ನಿಂದ ಶಿವಮೊಗ್ಗ ನಗರ ಸಭೆಯ ವ್ಯಾಪ್ತಿಯ ಸೋಮಿನ ಕೊಪ್ಪದವರೆಗೆ	3.30 k.m
ಶಿವಮೊಗ್ಗ ನಗರ ಸಭೆ ವ್ಯಾಪ್ತಿಯ ಸೋಮಿನ ಕೊಪ್ಪದಿಂದ ದೇವಕಾತಿ ಕೊಪ್ಪ ಗ್ರಾಮಕ್ಕೆ ಇರುವ ದೂರ (ಅಂ)			4.20 k.m

ಮೇಲ್ಕಂಡ ಇರುವ ದೂರವು ಒಂದು ಸ್ತಳದಿಂದ ಲೆಕ್ಕಕ್ಕೆ ತೆಗೆದುಕೊಂಡಿದ್ದು, ಒಂದು ವೇಳೆ ಸೋಮಿನ ಕೊಪ್ಪ ಗ್ರಾಮದ ಗಡಿಯಿಂದ ನಿರ್ದಿಷ್ಟವಾಗಿ ಲೆಕ್ಕಕ್ಕೆ ತೆಗೆದುಕೊಂಡಿದ್ದಲ್ಲಿ ಶಿವಮೊಗ್ಗ ನಗರ ಸಭೆಯ ಗಡಿಯಿಂದ ದೇವಕಾತಿ ಕೊಪ್ಪ ಗ್ರಾಮದ ಅಂತರ ೪.೨೦ ಕಿಲೋಮೀಟರ್‌ನಿಂದ ಕಡಿಮೆ ಇರುವ ಸಂಭವವಿರುತ್ತದೆ. ಇದರಿಂದಾಗಿ ವಾದಿಗಳು ಸಾಗು ಮಾಡಿದ ಜಾಮೀನು ಶಿವಮೊಗ್ಗ ನಗರ ಸಭೆ ಗಡಿಯಿಂದ ೫ ಕಿಲೋಮೀಟರ್ ಒಳಗೆ ಇದ್ದು ನಿಯಮಗಳ ಪ್ರಕಾರ ಮಂಜೂರು ಮಾಡಲು ಅವಕಾಶವಿರುವುದಿಲ್ಲ. ಹೀಗಾಗಿ ತಾಲೂಕು ಅನಧಿಕೃತ ಜಾಮೀನು ಸಕ್ರಮೀಕರಣ ಸಮೀತಿಯು ದಿನಾಂಕ ೩೧.೧೦.೨೦೦೨ ರಲ್ಲಿ ಕೈಗೊಂಡ

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ನಿರ್ಣಯವು ಕ್ರಮ ಬದ್ಧವಾಗಿರುತ್ತದೆ. ಮತ್ತು ಸದರಿ ನಿರ್ಣಯದಲ್ಲಿ ಈ ನ್ಯಾಯಾಲಯ ಮಧ್ಯೆ ಪ್ರವೇಶಿಸುವ ಅವಶ್ಯಕತೆ ಕಂಡು ಬಂದಿರುವುದಿಲ್ಲ. ಅದರಂತೆ ಈ ಆದೇಶ

ಆದೇಶ

ಮೇಲ್ಕಂಡ ಕಾರಣಗಳಿಂದ ಮೇಲ್ಕನವಿಯನ್ನು ವಜಾ ಮಾಡಿದೆ. ಈ ಆದೇಶವನ್ನು ಹೇಳಿ, ಬರೆಯಿಸಿ ಬೆರಳಚ್ಚು ಮಾಡಿರುವುದನ್ನು ಪರಿಶೀಲಿಸಿ, ಪರಿಸ್ಪರಿಸಿದಿನಾಂಕ ೧೭.೦೯.೨೦೧೦ ರಂದು ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಉದ್ಘೋಷಿಸಿದೆ.

ಸಹಿ/-

ವೈಕಾಲ್, ಕೆ.ಎ.ಎಸ್.,
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿ
ಶಿವಮೊಗ್ಗ ಉಪ ವಿಭಾಗ


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ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ನ್ಯಾಯಾಲಯ ಶಿವಮೊಗ್ಗ ಜಿಲ್ಲೆ, ಶಿವಮೊಗ್ಗ

ಡಿ.ಎಂ.ಪ್ರಕಾಶ್, ವಕೀಲರು

30-7-15

ಪ್ರಕರಣ ಸಂಖ್ಯೆ : ಆರ್ ಎ 22/2012-13

5-8-15

5-8-15

ಉಪಸ್ಥಿತರು : ವಿಮಲ್ ಬನ್ಸಲ್, ಡಿ.ಎಂ.ಪ್ರಕಾಶ್

ಜಿಲ್ಲಾಧಿಕಾರಿ,

4-8-15

10-08-2015 ರ 15:00 ಗಂಟೆಗೆ

ಶಿವಮೊಗ್ಗ ಜಿಲ್ಲೆ.

ವಾದಿಗಳು/ ಮೇಲ್ಮನವಿದಾರರು	ವಿರುದ್ಧ	ಪ್ರತಿವಾದಿಗಳು/ಆಕ್ಷೇಪಣೆದಾರರು
ಲಕ್ಷ್ಮಣ ಬಾಬು ಪಟ್ಟರ್ ಬಿನ್ ಬಾಬು ಬಿ.ಪೆಟ್ಟರ್ ದೇವಕಾತಿಕೊಪ್ಪ ಗ್ರಾಮ, ಶಿವಮೊಗ್ಗ ತಾಲ್ಲೂಕು. ಓ.ಎಂ.ಪ್ರಕಾಶ್, ವಕೀಲರು ಇವರಿಂದ		1. ಉಪವಿಭಾಗಾಧಿಕಾರಿ, ಶಿವಮೊಗ್ಗ ಉಪವಿಭಾಗ, 2. ತಹಶೀಲ್ದಾರ್, ಶಿವಮೊಗ್ಗ ತಾಲ್ಲೂಕು.

ಪ್ರಸ್ತಾವನೆ:

ಕರ್ನಾಟಕ ಭೂಕಂದಾಯ ಅಧಿನಿಯಮ 1964 ರ ಕಲಂ 50 ರನ್ವಯ ವಾದಿಗಳು ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು, ಶಿವಮೊಗ್ಗ ಇವರ ಆದೇಶ ಸಂಖ್ಯೆ ಆರ್.ಎ.3/03-04 ದಿನಾಂಕ:17-9-2010 ರ ಕ್ರಮಬದ್ಧತೆಯನ್ನು ಪ್ರಶ್ನಿಸಿ ಈ ಮೇಲ್ಮನವಿಯನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ. ಮೇಲ್ಮನವಿಯನ್ನು ವಿಚಾರಣೆಗೆ ಅಂಗೀಕರಿಸಿ ಸಂಬಂಧಪಟ್ಟವರಿಗೆ ತಿಳುವಳಿಕೆ ನೀಡಿ ಪ್ರಕರಣವನ್ನು ವಿಚಾರಣೆಗೆ ಶೈಗೈತ್ತಿಕೊಂಡಿದ್ದು, ಪ್ರಕರಣವನ್ನು ದಿನಾಂಕ 25-2-2013 ಮತ್ತು 08-07-2013 ರಂದು ವಿಚಾರಣೆ ಮಾಡಲಾಗಿದ್ದು, ದಿನಾಂಕ:8-7-2013 ರಂದು ವಾದಿಗಳ ಪರ ವಕೀಲರು ಲಿಖಿತ ವಾದವನ್ನು ಸಲ್ಲಿಸಿ, ತಮ್ಮ ವಾದವನ್ನು ಮಂಡಿಸಿದ್ದು, ಪ್ರಕರಣವನ್ನು ಆಲಿಸಿ ಆದೇಶಕ್ಕೆಂದು ಗೊತ್ತುಪಡಿಸಿರುತ್ತದೆ.

ವಾದಿಗಳ ಪರ ವಕೀಲರು ವಾದದ ಮುಖ್ಯ ಸಾರಾಂಶ ಈ ಕೆಳಕಂಡಂತಿರುತ್ತದೆ.

ವಾದಿಗಳು ಕೃಷಿಕರಾಗಿದ್ದು, ಅವರು ದೇವಕಾತಿಕೊಪ್ಪ ಗ್ರಾಮದ ಸ.ನಂ.1 ರಲ್ಲಿ 2-00 ಫೂಕರೆ ಜಮೀನನ್ನು (ವಿವಾದಿತ ಜಮೀನು) ಅವರ ತಂದೆಯವರ ಕಾಲದಿಂದಲೂ

ಅನಧಿಕೃತವಾಗಿ ಸಾಗುವಳಿ ಮಾಡಿಕೊಂಡು ಬಂದಿದ್ದು, ಅವರು 1991 ನೇ ಸಾಲಿನಲ್ಲಿ ಸದರಿ ಜಮೀನನ್ನು ಸಕ್ರಮಾಂತಿಗೊಳಿಸಿ ಕೊಡುವಂತೆ ತಹಶೀಲ್ದಾರರಿಗೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಮನೆಯನ್ನು ಸಹ ಕಟ್ಟಿದ್ದು, ಈ ಸಂಬಂಧದಲ್ಲಿ ಕೋಟೆಗಂಗೂರು ಮಂಡಲ ಪಂಚಾಯ್ತಿಯಲ್ಲಿ ಖಾತೆ ಸಹ ದಾಖಲಾಗಿದ್ದು ಆದರೆ ತಹಶೀಲ್ದಾರರ ಕಛೇರಿಯಲ್ಲಿ ಅವರು ಸಲ್ಲಿಸಿದ ಅರ್ಜಿಯು ಕಳೆದುಹೋದುದರಿಂದ ಮುನ: ದಿನಾಂಕ:18-12-1998 ರಲ್ಲಿ ನಮೂನೆ-53 ರಲ್ಲಿ ಸದರಿ ಜಮೀನು ಸಕ್ರಮಾಂತಿ ಕೋರಿ ತಹಶೀಲ್ದಾರರಿಗೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿರುವುದಾಗಿ ತಿಳಿಸಿರುತ್ತಾರೆ. ಸದರಿ ಅರ್ಜಿ ಆಧರಿಸಿ ಕಂದಾಯಾಧಿಕಾರಿಗಳು ಸ್ಥಳ ತನಿಖೆ ನಡೆಸಿದ್ದು, ಆ ಸಮಯದಲ್ಲಿ ವಾದಿಗಳು ವಿವಾದಿತ ಜಮೀನು ಸ್ವಾಧೀನ ಹೊಂದಿರುವುದಲ್ಲದೇ, ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಮನೆ ಕಟ್ಟಿರುವ ವಿಚಾರವನ್ನು ಸಹ ಗಮನಿಸಿ ರಿಕಾರ್ಡ್ ಮಾಡಿದ್ದು, ಆದರೆ ತಹಶೀಲ್ದಾರರು ತಪ್ಪಾಗಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿ ವಿವಾದಿತ ಜಮೀನು ನಗರಸಭೆ ಮಿತಿಯಿಂದ 5 ಕಿ.ಮಿ. ಯೊಳಗೆ ಬರುವುದಾಗಿ ವಾದಿಗಳ ಅರ್ಜಿಯನ್ನು ವಜಾ ಮಾಡಿರುವುದಾಗಿ ತಿಳಿಸಿರುತ್ತಾರೆ.

ಮುಂದುವರಿದು, ಸದರಿ ಆದೇಶವನ್ನು ಪ್ರಶ್ನಿಸಿ ವಾದಿಗಳು ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು, ಶಿವಮೊಗ್ಗ ಇವರಿಗೆ ಮೇಲ್ಮನವಿ ಸಲ್ಲಿಸಿದ್ದು, ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು ಸಹ ವಿವಾದಿತ ಜಮೀನು ನಗರಸಭೆ ವ್ಯಾಪ್ತಿಯ 5 ಕಿ.ಮಿ ಯೊಳಗೆ ಬರುವುದಾಗಿ ತಪ್ಪು ಅಭಿಪ್ರಾಯಕ್ಕೆ ಬಂದು ಯಾಂತ್ರಿಕವಾಗಿ ಮೇಲ್ಮನವಿಯನ್ನು ವಜಾ ಮಾಡಿದ್ದು, ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳ ಸದರಿ ಆದೇಶವನ್ನು ಪ್ರಶ್ನಿಸಿ ಈ ಮೇಲ್ಮನವಿ ಸಲ್ಲಿಸಿರುವುದಾಗಿಯೂ ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು ಸಹ ವಾದಿಗಳು 1991 ನೇ ಸಾಲಿಗಿಂತ ಮುಂಚಿನಿಂದಲೂ ಅವರ ತಂದೆಯವರ ಕಾಲದಿಂದಲೂ ವಿವಾದಿತ ಜಮೀನಿನ ಸ್ವಾಧೀನದಲ್ಲಿದ್ದ ವಿಚಾರವನ್ನು ಪರಿಗಣನೆಗೆ ತೆಗೆದುಕೊಂಡಿಲ್ಲವಾಗಿಯೂ, ಅಲ್ಲದೆ ಆ ಸಮಯದಲ್ಲಿ ವಿವಾದಿತ ಜಮೀನು ನಗರಸಭೆಯಿಂದ 5 ಕಿ.ಮಿ. ಯೊಳಗೆ ಬಾರದೆ ಇದ್ದ ವಿಚಾರವನ್ನು ಸಹ ಪರಿಗಣಿಸಿಲ್ಲವಾಗಿಯೂ ತಿಳಿಸಿರುತ್ತಾರೆ. ಮುಂದುವರಿದು ಪ್ರಸ್ತುತ ವಿವಾದಿತ ಜಮೀನು ನಗರಸಭೆಯಿಂದ 10 ಕಿ.ಮಿ. ದೂರವಿದ್ದು, ಆದರೆ ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು 1991ನೇ

ಸಾಲಿನ ಸ್ಥಿತಿಯನ್ನು (status) ಪರಿಗಣನೆಗೆ ತೆಗೆದುಕೊಂಡಿದ್ದಲ್ಲಿ ವಾದಿಗಳು ಜಮೀನು ಮಂಜೂರಾತಿಗೆ ಅರ್ಹತೆ ಹೊಂದಿದ್ದಾಗಿಯೂ, ಆದರೆ ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು ಸಹ ಇದ್ಯಾವುದೇ ವಿಚಾರಗಳನ್ನು ಗಣನೆಗೆ ತೆಗೆದುಕೊಳ್ಳದೆ ಮೇಲ್ಮನವಿಯನ್ನು ವಜಾ ಮಾಡಿದ್ದು, ಯಾವುದೇ ದೃಷ್ಟಿಯಿಂದ ನೋಡಿದರೂ ತಹಶೀಲ್ದಾರರು ಮತ್ತು ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳ ಆದೇಶ ನಿಯಮ ಭಾಹಿರವಾಗಿರುವುದರಿಂದ, ಸದರಿ ಆದೇಶಗಳನ್ನು ಬದಿಗೊತ್ತಿ ವಿವಾದಿತ ಜಮೀನನ್ನು ವಾದಿಗಳಿಗೆ ಮಂಜೂರು ಮಾಡುವಂತೆ ತಹಶೀಲ್ದಾರರಿಗೆ ನಿರ್ದೇಶನ ನೀಡುವ ಮೂಲಕ ಮೇಲ್ಮನವಿಯನ್ನು ಪುರಸ್ಕರಿಸಬೇಕಾಗಿ ಕೇಳಿಕೊಂಡಿರುತ್ತಾರೆ.

ಇಲ್ಲಿ ವಾದಿಗಳು 1991 ನೇ ಸಾಲಿಗಿಂತ ಮುಚಿನಿಂದಲೂ ವಿವಾದಿತ ಜಮೀನಿನ ಸ್ವಾಧೀನಹೊಂದಿ ಸಕ್ರಮಾತಿಗೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿರುವುದಾಗಿಯೂ, ಆ ಸಮಯದಲ್ಲಿ ವಿವಾದಿತ ಜಮೀನು ನಗರಸಭೆಯ 5 ಕಿ.ಮಿ. ಯೊಳಗೆ ಇರಲಿಲ್ಲವೆಂಬುದೇ ಅವರ ಮುಖ್ಯ ನಿಲುವಾಗಿರುತ್ತದೆ.

ಕರ್ನಾಟಕ ಭೂಕಂದಾಯ ಅಧಿನಿಯಮದ ಕಲಂ.94 ಎ(4) ರ ಪ್ರಕಾರ ನಗರಸಭೆ ಮಿತಿಯಿಂದ 5 ಕಿ.ಮಿ. ಒಳಗೆ ಬರುವಂತಹ ಜಮೀನನ್ನು ಸಕ್ರಮಾತಿಗೊಳಿಸಲು ಅವಕಾಶವಿರುವುದಿಲ್ಲ.

ವಾದಿಗಳು ತಾವು 1991 ನೇ ಸಾಲಿನಲ್ಲಿಯೇ ಸಕ್ರಮಾತಿ ಕೋರಿ ತಹಶೀಲ್ದಾರರಿಗೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿರುವುದಾಗಿಯೂ, ಇದು ಕಳೆದು ಹೋಗಿರುವುದಾಗಿ ಹೇಳಿದ್ದು, ಇದಕ್ಕೆ ಪೂರಕವಾಗಿ ಅವರು ಸ್ವೀಕೃತಿಯಾಗಲಿ ಅಥವಾ ಅಧೀಕೃತ ದಾಖಲೆ ಹಾಜರುಪಡಿಸದೆ ಇದ್ದು, ಹೀಗಾಗಿ ಅವರು 1991 ನೇ ಸಾಲಿನಲ್ಲಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದಾರೆಂಬ ವಿಚಾರವನ್ನು ಒಪ್ಪಲಾಗದು. ಮುಂದುವರೆದು ಪುನಹ: ದಿನಾಂಕ:18-12-1998 ರಲ್ಲಿ ನಮೂನೆ-53 ರಲ್ಲಿ ಸಕ್ರಮಾತಿ ಕೋರಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ಆಗ ಜಾಲ್ಮಿಯಲ್ಲಿದ್ದ ನಿಯಮಗಳ ಪ್ರಕಾರ ಶಿವಮೊಗ್ಗ ನಗರಸಭೆಯ ಗಡಿಯ ಮಿತಿಯಿಂದ 5 ಕಿ.ಮೀ. ಒಳಗೆ ಬರುವಂತಹ ಜಮೀನನ್ನು

ಸಕ್ರಮಾತಿಗೊಳಿಸಲು ಕಲಂ.94 ಎ(4) ರ ಪ್ರಕಾರ ಅವಕಾಶವಿಲ್ಲದೇ ಇದ್ದು, ಆ ಪ್ರಕಾರ ವಾದಿಗಳು ಸಲ್ಲಿಸಿದ ಸಕ್ರಮಾತಿ ಅರ್ಜಿಯನ್ನು ತಾಲ್ಲೂಕು ಸಕ್ರಮಾತಿ ಸಮಿತಿಯು ತನ್ನ ದಿನಾಂಕ:31-10-2002 ನಿರ್ಣಯದಲ್ಲಿ ವಜಾಗೊಳಿಸಿರುವುದು ಕ್ರಮಬದ್ಧವಾಗಿಯೇ ಇರುತ್ತದೆ. ಮುಂದುವರೆದು ವಾದಿಗಳು ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳ ಮುಂದೆ ಲೋಕೋಪಯೋಗಿ ಇಲಾಖೆಯಿಂದ ಪಡೆದು ಹಾಜರುಪಡಿಸಿದ ದೂರದ ವಿವರಗಳ ಪ್ರಕಾರ ಶಿವಮೊಗ್ಗ ನಗರಸಭೆಯ ಗಡಿಯ ಮಿತಿಯಿಂದ ದೇವಕಾತಿಕೊಪ್ಪ ಗ್ರಾಮವು ಶಿವಮೊಗ್ಗ ನಗರಸಭೆ ಗಡಿಯಿಂದ 4.20 ಕಿ.ಮೀ. ಇದ್ದು, ಇದು ನಿಯಮಗಳಲ್ಲಿ ನಿಗದಿಪಡಿಸಿದ 5 ಕಿ.ಮಿ.ಯೊಳಗೆ ಬರಲಿದ್ದು, ಈ ವಿಚಾರವನ್ನು ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು ತಮ್ಮ ಆದೇಶದಲ್ಲಿ (ಪ್ರಶ್ನಿತ) ಸವಿಸ್ತಾರವಾಗಿ ಚರ್ಚಿಸಿ ತಾಲ್ಲೂಕು ಬಗರ್ ಹುಕುಂ ಸಕ್ರಮ ಸಮಿತಿಯ ನಿರ್ಣಯವನ್ನು ಎತ್ತಿ ಹಿಡಿಯುವ ಮೂಲಕ ಮೇಲ್ಮನವಿಯನ್ನು ವಜಾ ಮಾಡಿ ಆದೇಶ ಹೊರಡಿಸಿರುತ್ತಾರೆ. ಹೀಗಾಗಿ ಪ್ರಶ್ನಿತ ಆದೇಶಗಳಲ್ಲಿ (ಉಪವಿಭಾಗಾಧಿಕಾರಿ ಮತ್ತು ತಹಶೀಲ್ದಾರರ) ಈ ನ್ಯಾಯಾಲಯ ಮಧ್ಯೆ ಪ್ರವೇಶಿಸುವ ಪ್ರಮೇಯ ಒದಗಿ ಬಂದಿರುವುದಿಲ್ಲ. ಅದರಂತೆ ಈ ಆದೇಶ.

ಆದೇಶ

ಮೇಲ್ಕಂಡ ಕಾರಣಗಳಿಂದಾಗಿ ಸದರಿ ಮೇಲ್ಮನವಿಯನ್ನು ವಜಾಮಾಡಿದೆ.

ಈ ಆದೇಶವನ್ನು ಶೀಘ್ರಲಿಪಿಗಾರರಿಗೆ ಹೇಳಿ ಬರೆಯಿಸಿ, ಕಂಪ್ಯೂಟರ್ ಮಾಡಿರುವುದನ್ನು ಪರಿಶೀಲಿಸಿ, ಪರಿಷ್ಕರಿಸಿ, ಈ ದಿನ 12 ನೇ ಸೆಪ್ಟೆಂಬರ್ 2013 ರಂದು ಬಹಿರಂಗ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಉದ್ಘೋಷಿಸಲಾಯಿತು.


"TRUE COPY"

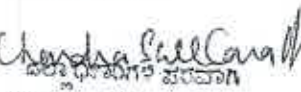

ಜಿಲ್ಲಾಧಿಕಾರಿ,

ಶಿವಮೊಗ್ಗ ಜಿಲ್ಲೆ.

ನಂ. 11-11-2014
Advocate


Sd/- Deputy Commissioner

"ಜಿಲ್ಲಾಧಿಕಾರಿಗಳಿಗೆ"


ಶಿವಮೊಗ್ಗ ಜಿಲ್ಲೆ, ಶಿವಮೊಗ್ಗ

SD
ANNEXURE - A

BEFORE THE KARNATAKA APPELLATE TRIBUNAL

AT BENGALURU

THIS THE 18TH DAY OF SEPTEMBER, 2024

REVISION PETITION NO: 30/2017

(COURT HALL - II)

PRESENT:

- 1) SMT. K. LEELAVATHY, IAS - REVENUE MEMBER,
2) SRI. KRISHNAPRASAD RAO KALMADY - DISTRICT JUDGE MEMBER.

BETWEEN:

Lakshman Babu Patgar,
S/o. Babbu B Patgar,
Aged about 52 years,
Occ: Agriculture and Service,
R/o. Devakathikoppa Village,
Kotegangur Post,
Shivamogga Taluk and District - 577204. ... Petitioner

(By Sri. S.V. Prakash, Advocate)

AND:

1. The Deputy Commissioner,
Shivamogga District,
Shivamogga - 577201.
The Assistant Commissioner,
Shivamogga Sub-Division,
Shivamogga - 577201.
3. The Tahasildar,
Shivamogga Taluk,
Shivamogga - 577201.



Leelavathy. 12
18/09/24

4. The Committee constituted for
Regularisation of unauthorised cultivation,
Shivamogga Taluk - 577201.
Represented by its Secretary.

... Respondents

(R1 to 4: By State Representative)

The following Order is delivered by
SMT. K. LEELAVATHY, IAS, REVENUE MEMBER

ORDER

Petitioner has filed this revision petition under Section 56 of the Karnataka Land Revenue Act, 1964 by challenging the order passed by the 1st respondent in R.A. No. 22/2012-13 dated 12.09.2013 and also filed IA-I under Section 5 of Limitation Act to condone the delay in filing this appeal in the interest of justice and equity.

2. The brief facts and grounds of the appeal are as under:



The petitioner submits that he and his father were residents of Devakathikoppa Village, Shivamogga Taluk and District. His father was unauthorisedly cultivating 2 acres of land in Sy.no. 1 of Devakathikoppa village, Shivamogga Taluk. The said land is a Government barren land totally measuring 11 acres which is not reserved for any special purpose. The petitioner and his father were and have been in possession of 2 acres of land in Sy.no. 1 much earlier to the date of commencement of the Karnataka Land Revenue Act, 1990. He filed the application under Form

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No. 50 seeking regularization of unauthorised cultivation over 2 acres of land in Sy.no. 1 of Devakathikoppa Village on 20.09.1991. The petitioner and his father constructed residential house in the 2 acres of land in their unauthorised cultivation and have been in occupation of the same along with the family. The Kotegangur Grama Panchayath has assessed the same for property tax and an entry came to be made in the Registers and books maintained by it and has assigned khameshumari no. 107. The authorities have initiated proceedings on the application filed by the petitioner under Form No. 53. A mahazar was drawn by the Tahasildar, Shivamogga wherein it is noticed that the petitioner has been in unauthorised possession of 2 acres of land in Sy.no. 1 of Devakathikoppa Village and the villagers made statement before the Tahasildar that they have no objection if the land in unauthorised cultivation of the petitioner is granted to him. A sketch was also prepared by the surveyor showing the actual extent in unauthorised cultivation of the petitioner and others in Sy.no. 1 of Devakathikoppa village. On 31.10.2002, the 4th respondent held meeting related to the applications filed in respect of the Sy.no. 1 of Devakathikoppa Village. The 4th respondent committee took decision that the land in Sy.no. 1 of Devakathikoppa village comes within 5 kms from the city limits and therefore, the applications filed by the petitioner and others cannot be considered and thereby the 4th respondent refused to recommend the 3rd respondent to regularize the unauthorised cultivation of the petitioner over 2 acres of lands in Sy.no. 1. Aggrieved by the resolution passed by the 4th respondent



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rejecting his claim for regularization has filed the appeal before the second respondent in R.A. No. 3/2003-04. The 2nd respondent by order dated 17.09.2010 dismissed the appeal holding that the land in Sy.no. 1 of Devakathikoppa village, comes within 4.20 kilometers from the city limits and cannot be granted to the petitioner. Thereafter an appeal was filed in R.A. No. 22/2012-13 before the 1st respondent. The 1st respondent in order dated 12.09.2013 was pleased to dismiss the appeal holding that the Devakathikoppa village comes within 4.20 kms from Shivamogga City limits and accordingly confirmed the order passed by the 2nd respondent. Being aggrieved by the order of the 1st respondent dated 12.09.2013 confirming the order passed by 2nd respondent has preferred this revision petition.

3. The revision petition was filed on 10.07.2017 with a delay of 1214 days and the same was admitted on 08.08.2017.



In pursuance of the notice, State Representative appeared for Respondents no. 1 to 4 and then secured the records.

We have heard the arguments of both sides. The counsel for the petitioner filed a memo along with 3 citations. They are

1. Copy of the judgment of the Hon'ble Supreme Court of India in ILR 2007 KAR 1521 between Rama Naik Vs The Deputy Commissioner and others.

2. Copy of the judgment of the Hon'ble Supreme Court

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of India in 2017(4) KCCR 2994 between Mahadev and others Vs State of Karnataka and others.

3. Copy of the judgment of the Hon'ble Supreme Court of India in 2018(1) KCCR 441 between The State of Karnataka and others vs The Assistant Commissioner, Doddaballapur.

6. For the above facts the following points arise for our consideration:-

1) Whether the IA-I filed under Section 5 of the Limitation Act deserves to be allowed to condone the delay in filing this petitioner?

2) Whether the order passed by the 1st respondent needs interference by this Tribunal?

3) What order?

7. Our findings to the above points are as under:



Point No. 1: In the Affirmative

Point No. 2: In the Negative

Point No. 3: As per the final order for the following:

REASONS

8. Point No.1: The impugned order has been passed on 12.09.2013, whereas the petition has been filed on 10.07.2017 and therefore, there is a delay in preferring this revision petition. In support of IA No.I, petitioner has sworn to an Affidavit stating

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that the delay in filing the revision petition is only on account of the communication gap between his advocate and himself. He did not appear before the 1st respondent in the appeal on all dates of hearing since his advocate informed him that his presence before the 1st respondent is not necessary and he would keep him informed about the developments in the appeal. He was not aware of the order passed by the 1st respondent dismissing his appeal. In the month of October 2016, he visited the office of his advocate and enquired about the developments but he failed to furnish the correct date and stage of the appeal. Thereafter he went to the office of the 1st respondent and enquired about his case he came to know his appeal was dismissed. Thereafter he contacted the local advocate and he advised to file the revision petition before this Tribunal. Therefore, the delay was for bonafide reasons and not intentional. Under the prevailing facts and circumstances of the case, we are of the view that the petitioner has satisfactorily explained the reasons for such delay.

If the application is not considered, he will be put to hardship and injury. Hence, we allow this application and condone the delay in filing this revision and we answer this point in the affirmative.



9. Point No.2:- We have gone through the petition memo, the trial Court records, citations, the documents and heard the arguments. The petitioner submits that he and his father were residents of Devakathikoppa Village, Shivamogga Taluk and District. His father was unauthorisedly cultivating 2 acres of

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land in Sy.no. 1 of Devakathikoppa village, Shivamogga Taluk. The said land is a Government barren land totally measuring 11 acres which is not reserved for any special purpose. The petitioner and his father were and have been in possession of 2 acres of land in Sy.no. 1 much earlier to the date of commencement of the Karnataka Land Revenue Act, 1990. He filed the application under Form No. 50 seeking regularization of unauthorised cultivation over 2 acres of land in Sy.no. 1 of Devakathikoppa Village on 20.09.1991. The petitioner and his father constructed residential house in the 2 acres of land in their unauthorised cultivation and have been in occupation of the same along with the family. The Kotegangur Grama Panchayath has assessed the same for property tax and an entry came to be made in the Registers and books maintained by it and has assigned khameshumari no. 107. The authorities have initiated proceedings on the application filed by the petitioner under Form No. 53. A mahazar was drawn by the Tahasildar, Shivamogga wherein it is noticed that the petitioner has been in unauthorised possession of 2 acres of land in Sy.no. 1 of Devakathikoppa Village and the villagers made statement before Tahasildar that they have no objection if the land in unauthorised cultivation of the petitioner is granted to him. A sketch was also prepared by the surveyor showing the actual extent in unauthorised cultivation of the petitioner and others in Sy.no. 1 of Devakathikoppa village. On 31.10.2002, the 4th respondent held meeting related to the applications filed in respect of the Sy.no. 1 of Devakathikoppa Village. The 4th



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respondent committee took decision that the land in Sy.no. 1 of Devakathikoppa village comes within 5 kms from the city limits and therefore, the applications filed by the petitioner and others cannot be considered and thereby the 4th respondent refused to recommend the 3rd respondent to regularize the unauthorised cultivation of the petitioner over 2 acres of lands in Sy.no. 1. Aggrieved by the resolution passed by the 4th respondent rejecting his claim for regularization has filed the appeal before the second respondent in R.A. No. 3/2003-04. The 2nd respondent by order dated 17.09.2010 dismissed the appeal holding that the land in Sy.no. 1 of Devakathikoppa village, comes within 4.20 kilometers from the city limits and cannot be granted to the petitioner. Thereafter an appeal was filed in R.A. No. 22/2012-13 before the 1st respondent. The 1st respondent in order dated 12.09.2013 was pleased to dismiss the appeal holding that the Devakathikoppa village comes within 4.20 kms from Shivamogga City limits and accordingly confirmed the order passed by the 2nd respondent. Being aggrieved by the order of 1st respondent dated 12.09.2013 confirming the order passed by 2nd respondent has preferred this revision petition.



The counsel for the petitioner has produced notification No. HUD 361, MLR 95, dated 05.10.1995 Karnataka Gazette, Extraordinary, dated 09.10.1995. And Karnataka Gazette Notification No. UDD 152 MLR 2013, Bangalore dated 20.12.2013. Both these Notifications specify the "Smaller Urban Area" in Schedule - A. Schedule - A in both the Notifications

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does not have the name of Devakathikoppa Village. So he is of the opinion that these two Notifications have to be considered while regularizing the said lands. When we perused the lower court records we find the order passed by the respondent no. 1 dated 12.09.2013 which reads as follows

“ವಾದಿಗಳು ತಾವು 1991ನೇ ಸಾಲಿನಲ್ಲಿಯೇ ಸಕ್ರಮಾತಿ ಕೋರಿ ತಹಶೀಲ್ದಾರರಿಗೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿರುವುದಾಗಿಯೂ, ಇದು ಕಳೆದು ಹೋಗಿರುವುದಾಗಿ ಹೇಳಿದ್ದು, ಇದಕ್ಕೆ ಪೂರಕವಾಗಿ ಅವರು ಸ್ವೀಕೃತಿಯಾಗಲಿ ಅಥವಾ ಅಧೀಕೃತ ದಾಖಲೆ ಹಾಜರುಪಡಿಸದೆ ಇದ್ದು, ಹೀಗಾಗಿ ಅವರು 1991ನೇ ಸಾಲಿನಲ್ಲಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದಾರೆಂಬ ವಿಚಾರವನ್ನು ಒಪ್ಪಲಾಗದು. ಮುಂದುವರೆದು ಪುನಃ ದಿನಾಂಕ 18.12.1998ರಲ್ಲಿ ನಮೂನೆ 53ರಲ್ಲಿ ಸಕ್ರಮಾತಿ ಕೋರಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ಆಗ ಚಾಲ್ತಿಯಲ್ಲಿದ್ದ ನಿಯಮಗಳ ಪ್ರಕಾರ ಶಿವಮೊಗ್ಗ ನಗರಸಭೆಯ ಗಡಿಯ ಮಿತಿಯಿಂದ 5 ಕಿ.ಮೀ ಒಳಗೆ ಬರುವಂತಹ ಜಮೀನನ್ನು ಸಕ್ರಮಾತಿಗೊಳಿಸಲು ಕಲಂ 94ಎ(4) ರ ಪ್ರಕಾರ ಅವಕಾಶವಿಲ್ಲದೆ ಇದ್ದು, ಆ ಪ್ರಕಾರ ವಾದಿಗಳು ಸಲ್ಲಿಸಿದ ಸಕ್ರಮಾತಿ ಅರ್ಜಿಯನ್ನು ತಾಲ್ಲೂಕು ಸಕ್ರಮಾತಿ ಸಮಿತಿಯು ತನ್ನ ದಿನಾಂಕ 31.10.2002 ನಿರ್ಣಯದಲ್ಲಿ ವಜಾಗೊಳಿಸಿರುವುದು ಕ್ರಮಬದ್ಧವಾಗಿದೆಯೇ ಇರುತ್ತದೆ. ಮುಂದುವರೆದು ವಾದಿಗಳು ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳ ಮುಂದೆ ಲೋಕೋಪಯೋಗಿ ಇಲಾಖೆಯಿಂದ ಪಡೆದು ಹಾಜರುಪಡಿಸಿದ ದೂರದ ವಿವರಗಳ ಪ್ರಕಾರ ಶಿವಮೊಗ್ಗ ನಗರಸಭೆಯ ಗಡಿಯ ಮಿತಿಯಿಂದ ದೇವಕಾತಿಕೊಪ್ಪ ಗ್ರಾಮವು ಶಿವಮೊಗ್ಗ ನಗರಸಭೆ ಗಡಿಯಿಂದ 4.20 ಕಿ.ಮೀ ಇದ್ದು, ಇದು ನಿಯಮಗಳಲ್ಲಿ ನಿಗದಿಪಡಿಸಿದ 5 ಕಿ.ಮೀಯೊಳಗೆ ಬರಲಿದ್ದು, ಈ ವಿಚಾರವನ್ನು ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು ತಮ್ಮ ಆದೇಶದಲ್ಲಿ (ಪ್ರತಿತ) ನಮೂನೆ 53ರಲ್ಲಿ ಚರ್ಚಿಸಿ ತಾಲ್ಲೂಕು ಬಾಸು ಹುಕುಂ ಸಕ್ರಮ ಸಮಿತಿಯ ನಿರ್ಣಯವನ್ನು ಎತ್ತಿ ಹಿಡಿಯುವ ಮೂಲಕ ಮೇಲ್ಮನವಿಯನ್ನು ವಜಾ ಮಾಡಿ ಆದೇಶ ಹೊರಡಿಸಿರುತ್ತಾರೆ. ಹೀಗಾಗಿ ಪ್ರತಿತ ಆದೇಶಗಳಲ್ಲಿ (ಉಪವಿಭಾಗಾಧಿಕಾರಿ ಮತ್ತು ತಹಶೀಲ್ದಾರರ) ಈ ನ್ಯಾಯಾಲಯ ಮಧ್ಯೆ ಪ್ರವೇಶಿಸುವ ಪ್ರಮೇಯ ಒದಗಿ ಬಂದಿರುವುದಿಲ್ಲ. ಆದರಂತೆ ಈ ಆದೇಶ



ಆದೇಶ

ಮೇಲ್ಕಂಡ ಕಾರಣಗಳಿಂದ ನದರಿ ಮೇಲ್ಮನವಿಯನ್ನು ವಜಾ ಮಾಡಿದೆ”.

Heelavathy, 12/09/24

Here this shows petitioner has submitted application on 18.12.1998 in Form No. 53. Any lands which come within the 5 kms from the boundaries of Shivamogga City Municipality cannot be regularized according to Section 94-A(4) of Karnataka Land Revenue Act, 1964. Petitioner has submitted PWD Department report regarding distance and limits of Shivamogga City Municipality. According to the report Devakathikoppa village is 4.20 kms from the boundary of the Shivamogga City Municipality. Hence this Tribunal comes to conclusion that there is no need to interfere with the order passed by the respondent no. 1 dated 12.09.2013 and accordingly answer this point is in the **Negative**.

11. **Point No. 3:** In view of above answer to point Nos. 1 & 2, we proceed to pass the following:



ORDER

IA-I under Section 5 of Limitation Act filed by the petitioner is hereby allowed and condoned the delay in filing this revision petition.

2. The revision petition filed by the petitioner under Section 56 of Karnataka Land Revenue Act, 1964 is hereby dismissed and consequently the order passed by the 1st respondent in R.A. No. 22/2012-13 dated 12.09.2013 is hereby confirmed.

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3. The office is directed to return the file submitted by the respondents no. 1 to 4.

4. The Office is directed to serve the order on the petitioner and the respondents, as provided



under Regulation 53(a) of the KAT Regulations, 1979.

order as to cost.

(Dictated to the Stenographer directly on computer, Typescript edited and then pronounced in the open Court this the 18th day of September 2024)

K. K. K. 18/9/24

(KRISHNAPRASAD RAO KALMADY)
DISTRICT JUDGE MEMBER

Leelavathy. K. 18/09/24

(K. LEELAVATHY)
REVENUE MEMBER

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Examined by *P. M.*

(Signature)

(Signature)
Deputy Registrar
Karnataka Appellate Tribunal
BANGALORE - 560 001

ಶಿವಮೊಗ್ಗ ಮಹಾನಗರ ಪಾಲಿಕೆ, ಶಿವಮೊಗ್ಗ



ಮಾಹಿತಿ/ಸಿ.ಆರ್: 16 /2014-15

ದಿನಾಂಕ:08-01-2015

“ಹಿಂಬರಹ”

61

ವಿಷಯ:-ಮಾಹಿತಿ ಹಕ್ಕು ಅಧಿನಿಯಮದಡಿಯಲ್ಲಿ ಸಲ್ಲಿಸಿರುವ ಮನವಿಯ ಕುರಿತು.

ಉಲ್ಲೇಖ:-ನಿಮ್ಮ ಕೋರಿಕೆಯ ಅರ್ಜಿ ದಿನಾಂಕ:25-11-2014

* - * - * - * - * - *

ನೀವು ಉಲ್ಲೇಖದನ್ವಯ ಮಾಹಿತಿಹಕ್ಕು ಅಧಿನಿಯಮದಡಿಯಲ್ಲಿ ಸಲ್ಲಿಸಿರುವ ಮನವಿಗೆ ಈ ಕೆಳಕಂಡಂತೆ ಮಾಹಿತಿ ಒದಗಿಸಿದೆ.

| ಕ್ರ.ಸಂ | ಕೋರಿರುವ ಮಾಹಿತಿ | ಒದಗಿಸಿರುವ ಮಾಹಿತಿ |
|--------|---|---|
| 1. | ಶಿವಮೊಗ್ಗ ತಾಲ್ಲೂಕು ದೇವಕಾತಿ ಕೊಪ್ಪ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ.1ರಲ್ಲಿ ಬಗರ್ ಹುಕುಂ ಜಮೀನು ಸಕ್ರಮಗೊಳಿಸುವ ಸಂಬಂಧ 1991 ರ ಸಾಲಿನಲ್ಲಿ ಸರ್ವೆ ನಂ.1ರ ಜಮೀನಿನ ಸೋಮಿನಕೊಪ್ಪ ಕಡೆಗೆ ತಮ್ಮ ಹಿಂದಿನ ನಗರಸಭೆ ವ್ಯಾಪ್ತಿಯ ಗಡಿ ಎಲ್ಲಿಯವರೆಗೆ ಇತ್ತು? ಎಂಬುದರ ಬಗ್ಗೆ ಮಾಹಿತಿ ನೀಡಲು ಕೋರಿದೆ. ಮತ್ತು ಕೆ.ಮೀ. ವ್ಯಾಪ್ತಿ ದೃಢೀಕರಣ ನಕಲು ನೀಡಲು ಕೋರಿದೆ.
ದಿನಾಂಕ:20-09-1991
ಸಾಲಿನ:1991 ರಿಂದ 2014 | ನೀವು ಕೋರಿರುವ ವಸ್ತು ವಿಷಯದ ಬಗ್ಗೆ ಪರಿಶೀಲಿಸಿದ್ದು ಈ ಕಛೇರಿಯಲ್ಲಿ ಲಭ್ಯವಿರುವ ಮಾಹಿತಿಯನ್ನು ಈ ಪತ್ರದೊಂದಿಗೆ ಲಗತ್ತಿಸಿ ನೀಡಲಾಗುತ್ತಿದೆ. |

ನಿರ್ದೇಶಕರು
ಶಿವಮೊಗ್ಗ ಮಹಾನಗರ ಪಾಲಿಕೆ
ಮಾಹಿತಿ ಕಛೇರಿ
ಮಹಾನಗರ ಪಾಲಿಕೆ, ಶಿವಮೊಗ್ಗ

ಗೆ,
ಶ್ರೀ ರಾಮಚಂದ್ರ ಪಟಗಾರ,
ದೇವಕಾತಿ ಕೊಪ್ಪ ಗ್ರಾಮ,
ಶಿವಮೊಗ್ಗ.

“TRUE COPY”

ANNEXURE - N

KARNATAKA GAZETTE

PUBLISHED BY AUTHORITY

(EXTRA ORDINARY)

PART IV- 2.C(II)

BANGALORE, TUESDAY, APRIL 11, 1978
(CHAITRA 21, SAKA ERA 1900)

No. 452

HOUSING AND URBAN DEVELOPMENT SECRETARIAT
Notification No. HUD 94 TML 77
Bangalore, dated 11th April 1978

In exercise of the powers conferred under sub-section (1) of Section 13 of the Karnataka Municipalities Act, 1964 (Karnataka Act 22 of 1964) and in pursuance of this Department's draft notification of even number and dated 22nd February 1978 published under S.O.No. 590 in Karnataka Gazette (extraordinary) dated 23rd February 1978 the Government of Karnataka hereby determines that:-

1. The number of territorial divisions in to which City Municipality, Shimoga is divided shall be ten (10);
2. The extent of each of the said divisions shall be the area comprised within the limits of the boundaries indicated in column (2) of the Schedule annexed to this notification;
3. The number of seats allotted to each of the territorial divisions are as indicated in column (3) of the said schedule;
4. The number of seats reserved for Scheduled Caste and Women in each territorial divisions are as indicated in column (4) and (5) respectively of the said schedule.

SCHEDULE

| Division | Extent of territorial Division | No. of seats allotted | No. of seats reserved for S.Cs. | No. of seats reserved for Women |
|------------|---|-----------------------|---------------------------------|---------------------------------|
| Division I | East- Starts from Kerali Sreepada Rao's house in P.B. Street towards North and cuts | 3 | nil | nil |

Road and on to Subbasetty building and then then proceeds to Maharudra Rice Mill.

- West- (1) Starts from Syed Hussain Sab's house. Savaipalya towards North and cuts the Savaipalya road at the house of Abdul Hak Sabs house and enter in the Oni of Babajan Sab's house and on to houses of Kumbar Erappa Abdul Jabbar and cuts the burial ground road and reaches the Revenue land of Rangappa sitated near new Thirthahalli Road.
- (2) Start from Antharagattamma Temple and proceeds towards North and reaches the Bande Nagappa's house and then proceeds upto Gore Nagesha Rao's house.

- North (1) Start from Gore Nagesha Rao's house towards East and reaches Vittal Rao's house and taking a turn towards South and proceeds upto Nadigakrishna Murthy's house and then taking turn towards East and reaches Vyasachar's House.
- (2) Starts from the revenue lands of Rangappa and proceeds towards East covering the house of Khadarsab and reaches the Culvert of Old Thirthahalli Road near Antharagattamma Temple.

South - Tunga River.

Division II

- East - (1) Starts from Abdul Nazeer Sab's house and proceeds towards North and on to Addul Rahimsab's house and Abdul Razak Sab's House and reach revenue land of Rangappa a.

- (2) Start from Aralkatta in front of Antharagattamma temple and on to Municipal Hospital, Vijaya Motor Garage and residence

5 1 1
~~revenue land of Rangappa~~
 and reach revenue land of Rangappa a.

6H



- 3 -

S.A. Raman's House and on to Dr.Pai's house in Old Thirthahalli Road in front of Sahyadri Hospital.

West - Start from Thirthahalli Tollgate and runs to the Thirthahalli road upto Revenue lands of Mandli Village S.No. 269, 258, 261, 262, 208, 220, 218, 223, 238, 235, 234, 191, 175, 173, 170, 171, 170, 165, and 62.

North:- Starts from behind Modern Talkies in Panchayati Colony Main Road and proceeds towards west and onto behind Durga Lodge and Kirthi Lodge and reaches M.P.Shariff Sab's House and then taking a turn towards North in front of New Bus Stand and reaches Ashoka Circle from from Ashoka Circle to M.A.R.P. quarters and reaches the house of Siddiah and proceeds upto Aralikatte behind the House of Narayana Rao and passes along the S.No. 108, 107 of Millaghatta Village and 62 of Mandli Village along the Millaghatta Settihalli Road.

South :- T hunga River

III Division.

East - Starts from Taluk Office towards North and reaches Head Post Office viz Mahatma Gandhi park and then taking a turn towards East and reaches Horticultural Office in Balaraja Urs Road and then taking turn towards North at Bhasheer Sab's garage and on to Janardhana Nelli's House and reaches Durgigudi Primary Schools Building near Durgigudi Co-operative Society in Park Centre Road.

3 Nil Nil

West:- Starts from New Bus Stand in New Thirthahalli Road and reaches Ashoka Circle in P.H.Road and onto M.A.R.P. Quarters and reaches Mc.Gann Hospital outer gate.

[Handwritten signature]
 ಸಹಾಯಕ ಮುಖ್ಯ ಮಂತ್ರಿ
 ಕರ್ನಾಟಕ ಸರ್ಕಾರ
 ಬೆಂಗಳೂರು

North:- Starts from the house of B.S.Bharame Gowda in front of the House of G.M. Javali and proceeds towards West and reaches Jai Hind Bangle Stores in Jail Road and then taking a turn towards North and reaches Mylareswara Rebuilt Machinery Industry (Siddoji Rao's House) and then taking a turn towards South and onto Shamachar's house and then taking a turn towards West reaches Hiranaiah's house near Mission compound in front of J.P. Road and then taking a turn towards South and onto Mc-Gann Hospital near side Gate along the Mission compound area in front of Modern Auto Workers and enter in the Mc-Gann Hospital area and runs along with Road upto Mc-Gann Hospital outer gate in B.H.Road.

South: Starts from Shanthappa Circle on towards West and reaches Ameer Ahamed Circle and onto K.S.Narayana Shetty building and leading to State Bank of Mysore building and reaches Ashoka Circle in B.H.Road.

IV Division:-

East:- Starts from Strick Land Circle towards North upto Shivmurthi Circle onto Savalanga Toll Gate and Proceed to Savalanga Road upto Railway Level Crossing. 5 1 1

West:- Starts from S.No. 1 of Srigandada Kavalu near Forest Department and Crosses B.H.Road and enters in Revenue Land S.No.13 of Gadikoppa and proceed in Revenue land S. Nos. 10,11 of Gadikoppa and 33, 32, 31, 29, 19; 21, 6, 9, 44 and 48 of Copala Village and cross the Settihalli Road.

North:- Starts from Railway level crossing gate in Savalanga Road and proceeds on the Railway tract upto S.No. 55 of Kallahalli Village and takes a turn and passes in Revenue Land S.Nos.56, 42, 33 34, 23, 22 of

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ಇಲಾಖೆಯಲ್ಲಿ ದಾಖಲೆ ಮಾಡಲಾಗಿದೆ

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- 5 -

Kallihalli village and meets S.No.1 of Sri. Gandadakavalu.

South: Starts from strick land Circle towards West in Balaraj Urs road and reaches part centre cross road and reaches ~~part~~ ~~centre cross road and reaches~~ Thimmaiah's Cycle shop and then taking a turn towards North and reaches G.M.Savali's House and then taking a turn towards West reaches Balaram Setty's house in Jail Road and then taking a turn towards North and reaches Gopalappa's House and then taking a turn towards South reaches Channabasappa's House and then taking a turn towards west and reaches Gowrama's House in J.P. Road and from there taking a turn towards South and reaches M.C.Gann Hospital Road side gate of the hospital and enter into the Hospital area and reaches Mc-Gann Hospital outer gate in B.H.Road and then taking a turn towards South road and proceeds towards Millaghatta road and onto M.A.R.P. Quarters upto Albert House onto Narayana Rao's House and onto Revenue lands S.No.109 of Millaghatta and 47, 48 of Gopala Village along the Millaghatta - Setthihalli Road upto Southern end of S.No.48 of Gopala Village.

V Division:

East: Starts from Udaya Garage in B.H.Road towards North reaches D. S.Rama Rao's House and onto Tailor Ramashingh's House reaches Bhagvan Ashrama Road and then taking a turn towards West upto Government High School compound and then proceeds up to attract shop and then taking a turn towards west and reaches Gaviyappa's house and then taking a turn towards North reaches the house of Sattar

3 Nil 1
N. Y. 10000
Kallihalli village and meets S.No.1 of Sri. Gandadakavalu
Kallihalli village and meets S.No.1 of Sri. Gandadakavalu
Kallihalli village and meets S.No.1 of Sri. Gandadakavalu

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- 6 -



house and taking a turn towards South and continued along with the Garden fencing upto tank bund road and then proceeds East and reaches Vineyaka Rice Mills and reaches the Railway Track and takes a turn to North along with the Railway Track and crosses at S.No.64 of Mullakere and taking a turn to East passes along boundary line of S.No. 63 of Mullakere villages and 62, 39 of Tyavarachattanahalli Village and takes a turn to North along boundary lines of S.No. 39 of Tyavarachattanahalli and meets the Shimoga Harihar Road near Wood Preservation Plant.

West: Starts from Santhappa Circle and onto protestant Church to Gopi Circle via Veerashivakalyana Mandira and National Girls High School and then taking a turn towards East and proceeds to H.P.C. Chitra-Mandira and on to Darga near Strick Land Circle and then taking a turn towards North and onto Savalanga Toll Gate and proceeds along the Savalanga Road upto Railway level crossing gate.

North: Starts from Railway crossing gate in savalanga Road and takes a turn to Eastern Direction along with the railway tract in Revenue Land in S.No.71 of Mullakere Village and takes a turn of Northern Direction in Revenue land in S.No.59 of Mullakere village and surrounding S.No.58 of Thyarachattanahalli and takes a turn to Eastern direction and proceeds to Honnali Toll Gate and takes a turn to Eastern direction proceed to Harihar Road upto end of Revenue land of S.No.39 of Tyavarachattanahalli Village near Wood Preservation Plant.

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V I Division:-

East :- Starts from Ramannasetty park and cross the B.B. Street near the house of Nanjundappa then taking a turn towards North upto the House of Venkatappa asetty and then taking turn towards West and proceeds up to the Conservancy behind the Primary School in B.B. Street via Chowdamma's temple and taking a turn towards North via Manjunatha Talkies S.S. Bharmappa's House and onto A.A.Circle.

3 Nil Nil

West: - Starts from Ramachandra Rao's House in B.B. Street and proceeds towards North and reaches Janaki Bai's House in N.R. Pur road and onto Kumar Kuduvala Box shop and then taking a turn towards West and proceeds upto Nadiga Krishnamurthy's Home and enter the K.R.Pur Extension at the House of Krishna Joi's upto Conservancy and then taking a turn towards west in the conservancy and reaches Old Thirthahalli Road in front of Agricultural Office compound and then taking a turn towards North east proceeds upto Sahyadri Hospital and then taking a turn towards West and proceeds upto the end of back portion of Modern Talkies and reaches B.H.Road.

North: Starts from Anoor Ahmed Circle, S.No. Market building towards West via Vinayaka Talkies and onto Ashoka Circle in B.H.Road.

South: Thunge River

VII Division:-

East: (1) Starts from Ramanna Setty Park to end

3 Nil Nil

N. Y. ...
...
...



Lashkar Mohalla Circle in Old Barline Road upto Gopala Rao's House.

(2) Starts from Abdul Samad Sab's shop in Gandhi Bazaar upto Circle Lunch Home in Santhappa's Circle.

West: Starts from Conservancy behind the Primary School in B.B. Street and proceeds towards North and onto Manjunatha Rice Mill and Proceeds further towards North in Kariyappanakeri upto A.A. Circle (Muslim Asharkhana)

North: Starts from Bharath Watch Company in A.A. Circle upto Shantappa's Circle near Taluk Office.

South: Conservancy behind the B.B. Street Thunga River.

VIII Division:-

East: Starts from Bhupalam Nanjaundaiah's House proceeds towards North and onto Marigaddige along the Old Post Office Road and reaches the flour Mill of Dasappa.

3 Nil Nil

West: Starts from Ramanasetti Park towards North enter into Thirupalaiah Street at the house of M.G. brothers and runs upto Lashkar Mohalla Circle upto Itche's house.

North: Starts from Lashkar Mohalla Circle towards East upto S.V. Ramachandra Rao's house passing via Mutton Market.

South: Thunga River

IX Division:

East: Starts from J. Vinayaka Rao's House towards North upto Shani Devaru temple and reaches Fort Road and taking a turn towards West and proceeds towards North from Bazaar Post Office and reaches

3 Nil Nil

[Handwritten signature and notes in Kannada script]

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Police Station Malnad Arocanut Co-operative Society and District Health Officer's Office Shimoga.

West: (1) Starts from Nallund, Shama Rao's House crossing S. P.M. Road and Ashoka Road and runs in Old Post Office Road via R.M. Office upto Partha Narayana Pandit's House.

(2) Starts from the shop of Rangaswamy in Gandhi Bazaar proceeds towards North upto Shanthappa Circle.

North: Starts from Shanthappa's Circle in front of Taluk Office and runs along B.H. Road via Municipal Office, Government Boys Middle School, District Education Officer's Office, Caltex Petrol Pump and Scout Hall

South: Thunga River starts from D. Hanumanthappa's Building proceeds upto Lashkar Mohalla Circle along old Barline Road upto Parthanarayana Pandit's Shop.

X Division:

East: Starts from Revenue Land S.No. 22 of Shimoga and proceeds along with the railway tract and then takes turn towards East Municipal land and Boundary line of S.No. 39 upto left bank of Thunga River and turns towards West and run along the left Bank of the Thunga River upto Thunga River bridge and takes a turn to South crosses the Thunga Bridge and take a turn to East along the Thunga River Right Bank and Entre the Revenue land in S.Nos. 17, 18, of Islapura and takes a turn to South along the boundary line Revenue Land S. No. 17, 18, 24, 25, 26 and cross the Hole-honour Road and proceeds to South along the boundary line of S.No. 29, 5 upto S.No. 46 of Islapura Village and cross the Railway tract and proceeds to South

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ಶಿಮೋಗಿ ಜಿಲ್ಲಾ ಪಂಚಾಯತ್
ಶಿಮೋಗಿ ಜಿಲ್ಲಾ ಪಂಚಾಯತ್

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Islapura vill age and cross the village boundaries and proceeds along Railway tract in S.Nos. 100,101,102,103, of Harige Village and takes a turn towards South and proceeds along the S.Nos. 103, 104,105,106,107, 108 of Harige Village upto B.H.Road and cross the B.H.Road and proceeds along the boundary line of S. Nos.19,20 of Thoppinagatta Village and ends at this point.

West: Starts from S.S.R. Compound fencing in S.No.91 of Uragadur Village and takes a turn to North proceeds along the boundary line of S.No.103,104,112,111, 81,37,40,31,20,22,21 of U rgadur village and reaches the Thunga river and takes a turn to East along the Right Bank of Thunga river and meets the Municipal Toll-gate near the Bridge and takes a turn towards North and crosses the Thunga River Bridge and take a turn to West along the left Bank of Thunga River and reaches the Government saw Mill towards North reaches Fort and Road then proceeds towards North and onto Narayana Kamaths House and to the House of Krishnamurthy, D.K.Subbanna, P.S.Rao Durgamma's Temple and onto Edwin Abr's House

Starts from Scout Hall to S.N.Manjappa's shop along B.H.Road and takes a turns towards North via Channa Gowda's House and then takes a turn towards west upto Government High School Compound via Bhagavan Ashram and then takes turn towards North upto Arrack Shop in Angaliahanekere Road and upto Dasappa's House and then take a turn towards North upto Honnappa's House

ಇವುಗಳಿಗೆ ಮುಖಾಂತರ ಅಧಿಕಾರಿಗಳು ಕೆಳಕಂಡ ವ್ಯವಸ್ಥಾಪಕರಾದವರಿಗೆ ಹಾಕಿದ ಕಾಲಕ. ಶಿವಮೊಗ್ಗ

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(11)

Sub: Starts from S.R.S. Compound fencing in S.No. 21 of Uragadur village and takes a turn to East in Revenue land S.Nos. 91,90,89,88 of Uragadur village and cross the old N.R.Pura Road and proceeds to East along the boundary line of S.Nos. 15,16,17,20 of Thoppinagatta village.

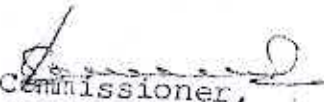
North: Starts from Thimmaiah's house in Seshadri puram extension towards North and cross the Honnali road near Hollaur Gopal setty Avalakki Mill and proceeds towards west upto Municipal well and on to Mahabub Sab's House in Tank Mohalla and then proceeds upto Honnappa's House behind mutton Stall in tank Mohalla.

| | | | |
|-------|----|---|---|
| Total | 35 | 3 | 3 |
|-------|----|---|---|

Border and in the name of the Governor of Karnataka

K.K. DASAPPA SETTY,
Under Secretary to Government,
Housing and Urban Development Department.

/ copy/


Commissioner,
City Municipal Council,
SHIMOGA.
26/6/89


ಸಾರ್ವಜನಿಕ ಕುಟುಂಬ ಅಭಿವೃದ್ಧಿ
ಕಾರ್ಯಾಚರಣೆ ಮತ್ತು ಸ್ಥಳೀಯ ಸರ್ಕಾರ
ಕುಟುಂಬ ಕಲ್ಯಾಣ, ಶಿವಮೊಗ್ಗ

P.S.


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Typed copy of Annexure-N

(Relevant Portion)

P/No. 66-72.

Kallahalli village and meets S.No.1 of Sri.Gandadakavalu.

South: Start from strick land circle towards west in Balraj urs road and reaches part Centre Cross Road and reaches Thimmaiah's cycle shop and then taking a turn towards north and Reaches G.M.Javalli's house and then taking a turn towards west reaches Balaram setty's house in jail road and then taking a turn towards north and reaches Gopalappa's house and then taking a turn towards west Gowrammas house in J.P road and from then taking a turn towards south and reaches MC Gann Hospital road side gate of the Hospital and enter into the hospital area and reaches MC. Gann.Hospital outer Gate in B.H road and then taking a turn towards South Road and proceed towards millagatta road and onto Narayana Rao's house and onto revenue lands S.No.109 of Millagatta and 47, 48 of Gopala village.

V Division:

East: Start from Udaya Garage in B.H roads towards North reaches D.S Rama Rao house and tailor Rama Singh house reaches Bhagwan Ashrama road and then taking a turn towards west up to Government High School compound and then proceeds up to arrack shop and then taking a turn towards west and reaches Gaviyappa's house and then taking a turn towers north reaches the house of sattar house and taking a turn towards south and continued along with the Garden fenecing up to tank bund road and then proceeds east and reaches Vinayaka Rice Mills And reaches the railway track and take a turned to North along with the railway track and crosses at survey number 63 of Mullakere villages and 62, 39 of

7A
Tyavarachattanahalli village and take a turn to North along with boundary line of survey number 39 of Tyavarachattanahalli and meets the Shimoga Harihara Road Near wood preservation plant.

West: Start from Santhappa Circle and on to protestant church to Gopi Circle via veerashaivakalyana Mandira and National Girls High School and then taking a turn towards east and proceeds to HPC Chitra Mandira and on to Darga near strick land Circle and then taking a turn towards north and on to Savalanga Toll Gate and proceed along the Savalanga road up to Railway level crossing Gate.

North: Start from railway crossing Gate in Savalanga road and takes a turn to Eastern direction along with the railway track in revenue land in survey number 71 of Mullakere village and take a turn of Northern direction in revenue land in survey number 59 of Mullakere village and surrounding survey number 58 of Thyarachattanahalli and take a turn to eastern direction and proceed to Sonali toll gate and take a turn to Eastern direction to proceed to Harihara road up to end of revenue land of survey number 39 of Tyavarachattanahalli village near wood preservation plant.

VI Division:-

East: Start from Ramanna Setty park and cross the B.B street near the house of Nanjundappa then taking a turn towards north up to the house of Venkatappa Setty and then taking current towards West and proceed up to the conservancy behind the primary school in B.B Street via Chowdamma's temple and taking a turn towards north via Manjunatha Talkies S.S Bharmappa's House and on to A.A Circle.

West: Start from Ramachandra Rao house in B.B Street and proceeds towards north and reaches Janaki Bai's House in N.R Pura road and on to Kumar Kuduvals Box shop and then taking a turn towards west and proceeds up to Nadiga Krishnamurthy home and enter the K.R Pura Extension at the House of Krishna Joi's upto conservancy and then taking a turn towards west in the conservancy and reaches old Thirthahalli road in front of agricultural office compound and then taking a turn towards north east proceeds up to Sahyadri Hospitals and then taking a turn towards west and proceeds up to the end of back portion of modern talkies and reaches B.H road.

North: Starts from Ameer Circle, S.No. Market building towards west via Vinayaka Talkies and onto Ashoka Circle in B.H Road.

South: Thunga River.

VII Division:

East: (1) Starts from Ramanna settee Park towards Lakshar Mohalla Circle in old Barline road up to Gopala rao's House

(2) start from Abdul Samad Sab's shop in Gandhi Bazar up to circle lunch home in Santhappa's Circle.

West: Starts from Conservation behind the primary school in B.B street and proceeds toward north and on to Manjunatha Rice mill and proceeds further towards north in Kariyappanakeri upto A.A Circle (Muslim Asharakhana)

North: Start from Bharath Watch Company in A.A Circle upto Shanthappa's Circle near Taluk office.

South: Conservancy behind the B.B street Thunga river.

VIII Division:-

East: Start from Bhupalam Nanjundiah's House proceeds towards north and upto Marigaddige along the old office road and reaches the flour mill of Dasappa.

West: Start from Ramasetti Park towards North enter into Thirupalain street at the house of M.G brithers and runs upto Lashkar Mohaolla circle upto Itche's house.

North: start from Lahkar Mohalla Circle towards east upto S.V Ramachandra rao's house passing via Mutton Market.

South: Thunga River.

IX Division:

East: Starts from j. Vinayaka rao's house towards north upto Shani Devaru temple and reaches Fort road and taking a turn towards west and proceeds towards north from Bazar post office and reaches police station malnad arecanut co-operative society and District Health officer's office Shimoga.

West: (1) starts from Nallunda Shama rao's house crossing S.P.M road and Ashoka road and runs in old post office road via R.M office upto Partha Narayana Pandit's house.

(2) Starts from the shop of Rangaswamy in Gandhi Bazar Proceeds towards north up to Shanthappa Circle.

North: Starts from Shanthappa Circle in front of Taluk office and runs along B.H road via Municipal office, government Boys Middle School, District Education officer's office, Caltex Petrol bunk and scout Hall.

South: Thunga River starts from D. Hanumanthappa's Building proceeds up to Lakshar Mohalla Circle along old building road up to Parthanarayana Pandit's shop.

X Division:

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East: starts from Revenue land S.No.22 of shimoga and proceeds along with the railways track and then takes turn towards east Municipal land and Boundary line of .No. 39 upto left bank of Thunga river bridge and takes a turn to south crosses the Thunga Bridge and take a turn to East along the Thunga River right Bank and Enter the revenue land in S.No.17.18 of Islapura and takes a turn to south along the boundary line revenue land S.No.17, 18, 24,25 26 and cross the Holehonnur road and proceeds to south along the boundary line of S.No.29, 5 upto S.no.4 of Islapura village and cross the railway tract and proceeds to south Islapura village and cross the village boundaries and proceeds along railway tract in S.No.100,101,102,103 of Harige village and takes a turn towards South and proceeds along the S.No. 103,104, 105,106,107,108 of Harige Village upto B.H road, and cross the B.H road and proceeds along the boundary line of S.No.19,20 of Thoppinagatta village and ends at this point.

West: starts from S.S.R Compound fencing in S.No.91 of Urugadur village and takes a turn to North Proceeds along the boundary line of S.No.103,104,112,111,81,37,40,20,22,21 of Urgadur village and reaches the Thunga river and takes a turn to east along the Right Bank of Thunga river and meets the Municipal Toll-gate near the Bridge and takes a turn towards North and crosses the Thunga river Bridge and take a turn to west along the left Bank of Thunga River and reaches the Government saw Nill towards North reaches Fort and road then proceeds towards north and on to Narayana Kamaths house and to the House of Krishnamurthy, D.K Subbanna, P.S Rao Durgamma's Temple and on to Edwin Abr's house.

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Starts from Scout Hall to S.N Manjappa's shop along B.H road and takes a turns towards North via Channa Gowda's house and then takes a turn Towards west up to Government High School Compound via Bhagavan Ashram and then takes turn towards North up to Arrack shop in Angaliahanakere road and upto Dasappa's house and then take a turn towards North Upto Honnappa's House.

South: starts from S.R.S compound fencing in s.no.21 of Uragadur village and takes a turn to east in Revenue land S.No.91,90,89,88 of Uragadur village and cross the old N.R Pura road and proceeds to east along the boundary line of s.no.15,16,17,20 of Thoppinagatta village.

North: Starts from Thimmaiah's house in Seshadri puram Extension towards North and cross the Honnali road near Hollaur Gopal setty avalakki Mill and proceeds towards west upto Minicipal well and on to Mahaboob Sab's House in tank Mohalla and then proceeds upto Honnappa's House behind mutton stall in tank Mohalla.

Total 35 3 3

Boarder and in the name of the Governer of Karnataka

**K.K. DASAPPA SETTY,
Urban Secretary to Government,
Housing and Urban Development
Department.**

**Sign/-
Commissioner,
City Municipal Council,
Shimoga.**



ಸದರಿ ರಾಜ್ಯಪತ್ರವನ್ನು 2ನೇ ನವೆಂಬರ್ 1995 ರಂದು ಸಾರ್ವಜನಿಕರಿಗೆ ಲಭ್ಯವಾಗುವಂತೆ ಮಾಡಿದ್ದರಿಂದ;

ನಿಗದಿತ ಅಧಿಯಲ್ಲಿ ಯಾವುದೇ ಅಕ್ಷೇಪಗಳಿಗು ಸ್ವೀಕೃತವಾಗಿಲ್ಲದಿರುವುದರಿಂದ;

ಅದ್ದರಿಂದ ಕರ್ನಾಟಕ ಪ್ರದೇಶಗಳ ಕಾಯ್ದೆ 1964 (1964ರ ಕರ್ನಾಟಕ ಕಾಯ್ದೆ 22)ರ ಕುರಿತು 349 ರಲ್ಲಿ ಪ್ರದತ್ತವಾದ ಅಧಿಕಾರವನ್ನಯ ಕರ್ನಾಟಕ ರಾಜ್ಯಪಾಲರು ಈ ಮುಂದಿನವುಗಳನ್ನು ಗಮನಿಸಿ ಅನುಸೂಚಿ 'ಎ'ಯಲ್ಲಿ ನಿರ್ದಿಷ್ಟಪಡಿಸಿರುವ ಪ್ರದೇಶವನ್ನು ಅನುಸೂಚಿ 'ಬ'ಯಲ್ಲಿ ನಿರ್ದಿಷ್ಟಪಡಿಸಲಾಗಿರುವ ಪರಿಮಿತಿಗಳನ್ನೊಳಗೊಂಡಂತೆ ಹೊಸದುರ್ಗ ಇದರ ಪರಿವರ್ತನೆಯಾಗುವ ಪ್ರದೇಶವೆಂದೂ ಹಾಗೂ ಸದರಿ ಪರಿವರ್ತನೆಯಾಗುವ ಪ್ರದೇಶವನ್ನು ಹೊಸದುರ್ಗ ಟೌನ್ ಪರಿಚಯತ್ ಎಂದು ನಿರ್ದಿಷ್ಟಪಡಿಸಲು ಈ ಮೂಲಕ ಉದ್ಘೋಷಿಸುತ್ತಾರೆ:-

- (i) ಅನುಸೂಚಿ 'ಎ'ನಲ್ಲಿ ನಿರ್ದಿಷ್ಟಪಡಿಸಿರುವ ಪ್ರದೇಶವು ತಾಲ್ಲೂಕಿನ ಕೇಂದ್ರ ಸ್ಥಾನವಾಗಿರುವುದನ್ನು;
- (ii) ಕೃಷಿಯೇತರ ಚಟುವಟಿಕೆಗಳಲ್ಲಿನ ಉದ್ಯೋಗಾವಕಾಶಗಳ ಶೇಕಡಾವಾರು ಪ್ರಮಾಣವು ಒಟ್ಟು ಉದ್ಯೋಗ ಪ್ರಮಾಣದ ಶೇಕಡಾ ಐವತ್ತಕ್ಕಿಂತ ಕಡಿಮೆ ಇಲ್ಲದಿರುವುದನ್ನು;

ಅನುಸೂಚಿ ಎ

ಹೊಸದುರ್ಗ ಮಂಡಲ ಪಂಚಾಯ್ತಿಯ ಹಾಲಿ ಪ್ರದೇಶ.

ಅನುಸೂಚಿ ಬಿ

ಹೊಸದುರ್ಗ ಮಧ್ಯಂತರ ಮಂಡಲ ಪಂಚಾಯ್ತಿಯ ಹಾಲಿ ಗಡಿ ಎಲ್ಲೆ.

Sl. No. 47

NOTIFICATION

No. HUD 641, MLR 95 (2), dated 2-11-1995

Karnataka Gazette, Extraordinary, dated 2-11-1995

In supersession of the Notification constituting Interim Mandal Panchayat, Holalkere and in exercise of the powers conferred by Section 349 read with Section 9 of the Karnataka Municipalities Act, 1964 (Karnataka Act 22 of 1964), the Governor of Karnataka having regard to:-

- (i) the area specified in Schedule A is a Taluk Head Quarter;
- (ii) the percentage of employment in non-agricultural activities being not less than fifty per cent of the total employment.

Hereby announces that it is proposed to specify such area the limits of which are specified in Schedule 'B' to be a transitional area of Holalkere and the said notification is hereby published for the information of the persons likely to be affected thereby and notice is hereby given that the notification will be taken into consideration after 30 days from the date of the publication of this notification in the Official Gazette.

All persons who entertain any objection to the said proposal are hereby required to submit the same with reasons therefor in writing to the Divisional commissioner, Bangalore Division, Bangalore before the

SCHEDULE A

1. Existing area of Interim Mandal Panchayat, Holalkere.

SCHEDULE B

2. Existing boundary limits of Interim Mandal Panchayat, Holalkere.

ಕ್ರಮ ಸಂಖ್ಯೆ : 47

ಅನುಸೂಚಿ

ಸಂಖ್ಯೆ: ದಸಿ 641, ಮಂರಲ್ 95 (2), ದಿನಾಂಕ 2-11-1995

ಕರ್ನಾಟಕ ರಾಜ್ಯ ವಿಶೇಷಪತ್ರಿಕೆ, ದಿನಾಂಕ 2-11-1995

ಹೊಸದುರ್ಗ ಮಧ್ಯಂತರ ಮಂಡಲ ಪಂಚಾಯ್ತಿಯನ್ನು ರಚಿಸಿ ಹೊಸದುರ್ಗವಾಗಿರುವ ಅಧಿಸೂಚಿಸಿಯನ್ನು ರದ್ದುಪಡಿಸಿ ಮತ್ತು 1964ರ ಕರ್ನಾಟಕ ಪ್ರದೇಶಗಳ ಅಧಿನಿಯಮದ (1964ರ ಕರ್ನಾಟಕ 22)ರ 9ನೇ ಪ್ರಕರಣದೊಂದಿಗೆ ಒದಗಿಸಿದ 349ನೇ ಪ್ರಕರಣದ ಮೂಲಕ ಪ್ರದತ್ತವಾದ ಅಧಿಕಾರ ಚಲಾಯಿಸಿ ಕರ್ನಾಟಕ ರಾಜ್ಯಪಾಲರು ಈ ಮುಂದಿನವುಗಳನ್ನು ಗಮನಿಸಿ ಎಂದರೆ:-

- (1) ಅನುಸೂಚಿ 'ಎ'ಯಲ್ಲಿ ನಿರ್ದಿಷ್ಟಪಡಿಸಿರುವ ಪ್ರದೇಶವು ತಾಲ್ಲೂಕಿನ ಕೇಂದ್ರ ಸ್ಥಾನವಾಗಿರುವುದನ್ನು;
- (2) ಕೃಷಿಯೇತರ ಚಟುವಟಿಕೆಗಳಲ್ಲಿನ ಉದ್ಯೋಗಾವಕಾಶಗಳ ಶೇಕಡಾವಾರು ಪ್ರಮಾಣವು ಒಟ್ಟು ಉದ್ಯೋಗ ಪ್ರಮಾಣದ ಶೇಕಡಾ ಐವತ್ತಕ್ಕಿಂತ ಕಡಿಮೆ ಇಲ್ಲದಿರುವುದನ್ನು;

ಅನುಸೂಚಿ 'ಬ'ಯಲ್ಲಿ ನಿರ್ದಿಷ್ಟಪಡಿಸಲಾಗಿರುವ ಪರಿಮಿತಿಗಳನ್ನೊಳಗೊಂಡ ಪ್ರದೇಶವನ್ನು ಹೊಸದುರ್ಗ ಪರಿವರ್ತನೆಯಾಗುವ ಪ್ರದೇಶವೆಂದು ಪ್ರಸ್ತಾಪಿಸಲಾಗಿದೆ ಎಂದು ಈ ಮೂಲಕ ಉದ್ಘೋಷಿಸುತ್ತಾರೆ. ಮತ್ತು ಸದರಿ ಅಧಿಸೂಚಿಸಿಯನ್ನು ಅದರಿಂದ ಬಾಧಿತವಾಗುವುದಾದಂತಹ ವ್ಯಕ್ತಿಗಳ ಅಪಗಾಹವನ್ನಾಗಿ ಈ ಮೂಲಕ ಪ್ರಕಟಪಡಿಸಿದೆ ಮತ್ತು ಅಧಿಸೂಚಿಸಿಯನ್ನು ಸರ್ಕಾರಿ ರಾಜ್ಯ ಪತ್ರವನ್ನು ಪ್ರಕಟಿಸಿದ ದಿನಾಂಕದಿಂದ ಮೂವತ್ತು ದಿನಗಳ ತರುವಾಯ ಈ ಅಧಿಸೂಚಿಸಿಯನ್ನು ಪರಿಶೀಲನೆಗೆ ತೆಗೆದು ಕೊಳ್ಳಬಾರವುದೆಂದು ಈ ಮೂಲಕ ನೋಟೀಸನ್ನು ನೀಡಲಾಗಿದೆ.

ಸದರಿ ಪ್ರಸ್ತಾವನೆ ಸಂಬಂಧದಲ್ಲಿ ಯಾವುದೇ ಅಕ್ಷೇಪಗಳನ್ನು ಸಲ್ಲಿಸಲು ಇಚ್ಛಿಸುವ ಎಲ್ಲಾ ವ್ಯಕ್ತಿಗಳು ಅದನ್ನು ಲಿಖಿತದಲ್ಲಿ ನಿರ್ದೇಶಿಸಿ ಸಹಿತವಾಗಿ ಸದರಿ ದಿನಾಂಕಕ್ಕೆ ಮೊದಲು ಬೆಂಗಳೂರು ವಿಭಾಗದ ವಿಭಾಗಾಧಿಕಾರಿಯವರಿಗೆ ಸಲ್ಲಿಸಬೇಕೆಂದು ಈ ಮೂಲಕ ಅಗತ್ಯಪಡಿಸಲಾಗಿದೆ.

ಅನುಸೂಚಿ ಎ

ಹೊಸದುರ್ಗ ಮಧ್ಯಂತರ ಮಂಡಲ ಪಂಚಾಯ್ತಿಯ ಹಾಲಿ ಪ್ರದೇಶ.

ಅನುಸೂಚಿ ಬಿ

ಹೊಸದುರ್ಗ ಮಧ್ಯಂತರ ಮಂಡಲ ಪಂಚಾಯ್ತಿಯ ಹಾಲಿ ಗಡಿ ಎಲ್ಲೆ.

Sl. No. 48

NOTIFICATION

No. HUD 361, MLR 95, dated 5-10-1995

Karnataka Gazette, Extraordinary, dated 9-10-1995

ಅಧಿಕಾರಿ

ಅಧಿಕಾರಿ

ಅಧಿಕಾರಿ

ಅಧಿಕಾರಿ

ಅಧಿಕಾರಿ

Whereas, the draft of the notification specifying smaller urban area

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called City Municipal area of Shimoga was published as required by Section 9 of the Karnataka Municipalities Act, 1964 (Karnataka Act 22 of 1964) in Notification No. HUD 361 MLR 95 dated 3-8-95 in Part IV Section 2-C(ii) of the Karnataka Gazette Extraordinary dated 7-8-95 inviting objections to the said proposal from all persons likely to be affected thereby on or before thirty days from the date of publication of the said Notification.

And, whereas, the said Gazette was made available to public on Seventh day of August 1995.

And, whereas, objections received within the period specified above have been examined.

Now, therefore, in exercise of the powers conferred by Section 3 read with Section 9 of the Karnataka Municipalities Act, 1964, the Governor of Karnataka hereby specify the smaller urban area specified in Schedule 'A' the limits of which are specified in Schedule 'B' and to further specify it to be called Municipal Council area of Shimoga, having regard to:—

- (i) the population of such area is not less than fifty thousand and not exceeding three lakhs;
- (ii) the density of population in such area is not less than one thousand five hundred inhabitants to one square kilometre area;
- (iii) the revenue generated for local administration from such area from tax and non-tax sources in the year of the last preceding census is not less than Rs. 22,50,000/- per annum or a sum calculated at the rate of Rupees forty five per capita per annum, whichever is higher;
- (iv) the percentage of employment in non-agricultural activities is not less than fifty per cent of the total employment.

SCHEDULE A

- (1) Shimoga Town
- (2) Villages:

- | | |
|--------------------------|---------------------|
| 1. Shimoga | 14. Harige |
| 2. Malligenahally | 15. Malavagoppa |
| 3. Alkola | 16. Thoppinagatta |
| 4. Kallahally | 17. Urgadur |
| 5. Kashipura | 18. Vadalinakoppa |
| 6. Somanakoppa | Hamlet of |
| 7. Bommanakatte | Urgadur |
| 8. Venkatapura | 19. Sulebyle |
| 9. Mullakere | 20. Harakere |
| 10. Navile | 21. Mandli |
| 11. Thevarachannanahally | 22. Gopashettikoppa |
| 12. Islamapura | 23. Gopala |
| 13. Purle | 24. Gadikoppa |

SCHEDULE B

The limits of Shimoga City Municipality starts from West-North of the Malligenahally village boundary from Sagar to Shimoga Road. It moves towards the Northern direction of Malligenahally village boundary and touches the Alkola village at Western side corner and moves along Somanakoppa village boundary towards North direction and turns East direction along the village boundary of Bommanakatte village towards North and it moves along the Navile village towards Northern side. Again it turns South-East direction of the village boundary of Navile village and it again turns Eastern direction along the said village boundary and it moves North-East direction of the Thevarachannanahally village boundary and it turns towards East-South village boundary of the Thevarachannanahally and cross Tunga river and turns towards the North-East side along the Right Bank of river Tunga and village boundary of Purle and turns all along the Purle village boundary South-East direction. Moves along the Northern side of Harige village boundary, then moves towards North direction along the village boundary of Malavagoppa and again it takes turn towards South direction of the said village boundary and reaches the Northern boundary of Dummahalli village and runs through Northern boundary towards West and reaches Thoppinagatta East boundary takes turn towards South direction and reaches the Southern boundary of Thoppinagatta and runs towards East to reach Southern boundary of Sulebyle and reaches the right bank of River Tunga and crossing the river near village boundary of Harakere at Eastern corner. It moves all along the South side boundary of said village again it turns towards North direction along said village boundary then it turns towards Western direction along village boundary of Mandli, Gopisettykoppa and continues along with Eastern boundary of Anupinakatte. Again it turns towards North direction along Anupinakatte, North boundary and reaches Malligenahally village East boundary and runs towards South direction on the same line reaches to Malligenahally West boundary line. Further it moves towards North direction and reaches to the starting point of the running boundary.

ಕ್ರಮ ಸಂಖ್ಯೆ : 48

ಅಧಿಸೂಚನೆ

ಸಂಖ್ಯೆ: ಜಸಗ 361, ಮಂಡಲ್ ಆರ್ 95, ದಿನಾಂಕ 5-10-1995
ಕರ್ನಾಟಕ ರಾಜ್ಯ ವಿಶೇಷಪತ್ರಿಕೆ, ದಿನಾಂಕ 9-10-1995

ಕರ್ನಾಟಕ ಪರಿಷತ್‌ಗಳ ಕಾಯ್ದೆ 1964 (1964ರ ಕರ್ನಾಟಕ ಕಾಯ್ದೆ 22)ರ ಕಲಂ 9ರ ಅಡಿಯಲ್ಲಿ ಲಾಗು ಪಡಿಸಿರುವಂತೆ ಶಿವಮೊಗ್ಗ ಸಣ್ಣ ನಗರ ಪ್ರದೇಶವನ್ನು ಶಿವಮೊಗ್ಗ ನಗರ ಸ್ವಯಂಸಹಾಯ ನಿರ್ದಿಷ್ಟಪಡಿಸಲು ಪ್ರಸ್ತಾವಿಸಿ ಅಧಿಸೂಚನೆ ಸಂಖ್ಯೆ: ಜಸಗ 361 ಎಂಎಲ್ ಆರ್ 95 ದಿನಾಂಕ 3-8-1995ನ್ನು ದಿನಾಂಕ 7-8-1995ರ ಕರ್ನಾಟಕ ವಿಶೇಷ ರಾಜ್ಯ ಪತ್ರದ ಭಾಗ 4 ಸೆಕ್ಷನ್ 2(ii) ಯಲ್ಲಿ ಪ್ರಕಟಿಸಿ ಇದರಿಂದ ಜಾರಿಹೂಡುವುದಾದ ಎಲ್ಲಾ ವ್ಯಕ್ತಿಗಳಿಂದ ಸದರ ಅಧಿಸೂಚನೆಯನ್ನು ಪ್ರಕಟಿಸಿದ ದಿನಾಂಕದಿಂದ 30 ದಿನಗಳೊಳಗಾಗಿ ಆಕ್ಷೇಪಗಳನ್ನು ಆಹ್ವಾನಿಸಲಾಗುವುದು.

ಸದರಿ ರಾಜ್ಯ ಪತ್ರವನ್ನು 7-8-1995ರಂದು ಸಾರ್ವಜನಿಕರಾಗಿ ಲಭ್ಯವಾಗುವಂತೆ ಮಾಡಿದ್ದು;

ಶಿವಮೊಗ್ಗ ಮುಖ್ಯಮಂತ್ರಿ
ಶಿವಮೊಗ್ಗ ಮುಖ್ಯಮಂತ್ರಿ
ಶಿವಮೊಗ್ಗ ಮುಖ್ಯಮಂತ್ರಿ
ಶಿವಮೊಗ್ಗ ಮುಖ್ಯಮಂತ್ರಿ

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- உயர்வு

- (1) ವಿವರಣೆ: ಬಗರ
- (2) ವಿವರಣೆ: ಹೊರವಲಯ ಗ್ರಾ.ಪಂ.ಗಳಲ್ಲಿ

- | | |
|--------------------|-------------------|
| (1) ತಿಮ್ಮನಗ | (2) ಮಲ್ಲಿಗನಹಳ್ಳಿ |
| (3) ಅಬ್ಬೇಳ | (4) ಕಲ್ಲಹಳ್ಳಿ |
| (5) ಕಾಶಿಹಳ್ಳಿ | (6) ಸೋಮನಕೊಪ್ಪ |
| (7) ಬೊಮ್ಮನಕಟ್ಟೆ | (8) ವೆಂಕಟಾಪುರ |
| (9) ಮುಳ್ಳುಕೆರೆ | (10) ನವೆರೆ |
| (11) ತವರಬಳ್ಳಿಹಳ್ಳಿ | (12) ಇಬ್ಬಾಪುರ |
| (13) ಪುರ | (14) ಪರಿಗೆ |
| (15) ಮುರಗನಹಳ್ಳಿ | (16) ತೋಟನಗಟ್ಟಿ |
| (17) ಬೀದಗಡೂರು | (18) ವೆಂಕನಕೊಪ್ಪ |
| (19) ಸೂರ್ಯಪು | (20) ಪರಕೆರೆ |
| (21) ಮಂಡ್ಯ | (22) ಗೋಪಿಶೈಲಕೊಪ್ಪ |
| (23) ಗೋಪಾಳ | (24) ಗಾಡಿಹೊಪ್ಪ |

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ಶಿವಶಿವೋಗ್ಗ ನಗರಭವಯ ಗಡಿಯ ಸಾಗರದಿಂದ ಶಿವಮೊಗ್ಗ ರಕ್ಷೆಯಲ್ಲಿನ ಮಲ್ಲಿಗೆಸಹಳ್ಳಿ ಗ್ರಾಮದ ಖಯ ವಾಯುವ್ಯದಿಂದ ಪ್ರಾರಂಭವಾಗುತ್ತದೆ. ಇದು ಮಲ್ಲಿಗೆಸಹಳ್ಳಿ ಗ್ರಾಮದ ಗಡಿಯ ಮೂಲಕ ಉತ್ತರ ದಿಕ್ಕಿನಲ್ಲಿ ಚಲಿಸಿ, ಅಲ್ಪೇಳ ಗ್ರಾಮದ ಚುಕ್ಕಿನಲ್ಲಿ ಬಲಿಷ್ಠ ಪೂರ್ವಕ್ಕೆ ತಿರುಗಿ ಬೆಣ್ಣೆಯನಹಳ್ಳಿ ಗ್ರಾಮದ ಖಯ ಮೂಲಕ ಉತ್ತರಕ್ಕೆ ಸಾಗಿ ನವಲಿ ಗ್ರಾಮದ ಗಡಿಯ ಮೂಲಕ ಉತ್ತರ ದಿಕ್ಕಿನಲ್ಲಿ ಚಲಿಸಿ ಬನಕೊಟ ಅದೇ ಗ್ರಾಮದ ಗಡಿಯ ಮೂಲಕ ಪೂರ್ವಕ್ಕೆ ತಿರುಗಿ ತೆವರಚನಹಳ್ಳಿ ಗ್ರಾಮದ ಗಡಿಯ ಮೂಲಕ ಈಶಾವ್ಯ ಸಾಗಿ ರಂಗ ಸದಿಯನ್ನು ದಾಟುತ್ತದೆ. ಅಲ್ಲಿಂದ ಇದು ಈಶಾವ್ಯ ದಿಕ್ಕಿನಲ್ಲಿ ತುಂಗಾ ನದಿಯ ಒಲಬದಿಯಲ್ಲಿ ಸಾಗಿ ಬಲಿ ಗ್ರಾಮದ ಗಡಿಯ ಮೂಲಕ ಆಗ್ನೇಯ ದಿಕ್ಕಿನಲ್ಲಿ ಚಲಿಸುತ್ತದೆ. ಅನಂತರ ಅದೇ ಗ್ರಾಮದ ಉತ್ತರ ದಿಕ್ಕಿನಲ್ಲಿ ಸಿಮಿ ಮೂಲಕ ಚಲಿಸಿ ಮಲಮಗ್ಗಹಳ್ಳಿ ಗ್ರಾಮದ ಗಡಿಯಲ್ಲಿ ಉತ್ತರ ದಿಕ್ಕಿನಲ್ಲಿ ಸಾಗಿ ಪುಟ ಅದೇ ಗ್ರಾಮದ

✓

ಗಡಿಯಲ್ಲಿ ವಕ್ರೀಕೃತವಾಗಿ ಮಮ್ನಾಳಿ ಗ್ರಾಮದ ಉತ್ತರ ಗಡಿಯ ಮೂಲಕ ಪಾಡು ಪಕ್ಕಿಮದ ಗಡಿಯನ್ನು ತಲುಪುವ ತೋಟವಾಗಿದ್ದು, ಗ್ರಾಮದ ವಕ್ರೀಕೃತ ಗಡಿಯ ಮೂಲಕ ಸೇರಿದಲ್ಲಿ ಗ್ರಾಮಗಳ ಮೂಲಕ ಪಾಡು ತುಂಗಾ ನದಿಯನ್ನು ತಲುಪುತ್ತದೆ. ಆದರೆ ಗ್ರಾಮದ ಗಡಿಯ ಪೂರ್ವದ ಮೂಲೆಯಲ್ಲಿ ತುಂಗಾ ನದಿಯನ್ನು ಬಾಟು ಬಿಡುವ ಗ್ರಾಮದ ವಕ್ರೀಕೃತ ಗಡಿಯ ಮೂಲಕ ಪಾಗಿ ಅಲ್ಲಿ ಗ್ರಾಮದ ಗಡಿಯನ್ನು ತುಂಗಾ ಉತ್ತರಕ್ಕೆ ಚಲಿಸುತ್ತದೆ. ಪೂಜೆ ಪಕ್ಕಿಮಕ್ಕೆ ತುಂಗಾ ವಾಂದಿ ಗೊಂಬೆಬೈಕೊಳ್ಳ ಗ್ರಾಮದ ಎಲ್ಲಿ ಮೂಲಕ ಪಾಡು ಬಿಸುಬಿಟ್ಟು ಗ್ರಾಮದ ಗಡಿಯ ಮೂಲಕ ಉತ್ತರ ವಕ್ರೀಕೃತವಾಗುತ್ತದೆ. ಅಲ್ಲಿಂದ ಪಕ್ಕಿಮ ದಿಕ್ಕಿಗೆ ತುಂಗಾ ವಾಲ್ಮೀಕಿಗನಹಳ್ಳಿ ಗ್ರಾಮದ ವಕ್ರೀಕೃತ ಗಡಿಯ ಮೂಲಕ ಪಕ್ಕಿಮ ಗಡಿಯ ಪಾರುಭದ ಎಂಬುವವನ್ನು ಸೇರುತ್ತದೆ.

Sl. No. 49

NOTIFICATION

No. HUD 360, MLR 95, dated 5-10-1995
Kamataka Gazette, Extraordinary, dated 9-10-1995

Whereas, the draft of the notification specifying smaller urban area of Bhadravathi and to further specify the said smaller urban area to be called City Municipal area of Bhadravathi was published as required by Section 9 of the Karnataka Municipalities Act, 1964 (Karnataka Act 22 of 1964) in Notification No. HUD 360 MLR 95 dated 3-8-1995 in Part IV Section 2-C (ii) of the Karnataka Gazette Extraordinary dated 7-8-1995 inviting objections to the said proposal from all persons likely to be affected thereby on or before thirty days from the date of publication of the said Notification.

And, whereas, the said Gazette was made available to publication
Seventh day of August 1995.

And, whereas, objections received within the period specified above have been examined.

Now, therefore, in exercise of the powers conferred by Section 3 read with Section 9 of the Karnataka Municipalities Act, 1964, the Governor of Karnataka hereby specify the smaller urban area specified in Schedule 'A' the limits of which are specified in Schedule 'B' and to further specify it to be called City Municipal Council area of Bhadravathi, having regard to:—

- (i) the population of such area is not less than fifty thousand and exceeding three lakhs;
- (ii) the density of population in such area is not less than one thousand five hundred inhabitants to one square kilometre of area;
- (iii) the revenue generated for local administration from such area from tax and non-tax sources in the year of the last preceding census is not less than Rs. 22,50,000/- per annum or a sum calculated at the rate of Rupees forty five per capita per annum.

[illegible]

ಅಧಿಕಾರಿಗಳ ಸಂಖ್ಯೆ, ಶಿಕ್ಷಣ

ANNEXURE



ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರ

ಅಧಿಕೃತವಾಗಿ ಪ್ರಕಟಿಸಲಾದುದು

ವಿಶೇಷ ರಾಜ್ಯ ಪತ್ರಿಕೆ

| | | |
|-------------|---|---------|
| ಭಾಗ - IV-A | ಬೆಂಗಳೂರು, ಶುಕ್ರವಾರ, ದಿವಸಂಜೆ ೨೦, ೨೦೧೩ (ಮಾರ್ಗಶಿರ ೨೯, ಶಕ ವರ್ಷ ೧೯೩೫) | ಸಂ.೧೩೫೮ |
| Part - IV-A | Bangalore, Friday, December 20, 2013 (Margashira 29, Shaka Varsha 1935) | No.1358 |

URBAN DEVELOPMENT SECRETARIAT

NOTIFICATION

No. UDD 152 MLR 2013, Bangalore, Dated: 20-12-2013

The area mentioned in the Schedule-A to this notification with the boundaries mentioned in the Schedule-B to this notification was declared as a "Smaller Urban Area" and it was also further specified as "City Municipal Council Area" of Shimoga as per Government Notification No.HUD 361 MLR 95, dated:05.10.1995. In exercise of the powers conferred by Section 3 read with Section 503 of the Karnataka Municipal Corporation Act 1976 (Karnataka Act No.14 of 1977) the Governor of Karnataka hereby specify the "City Municipal Council Area" of Shimoga mentioned in Schedule-A and the limits which are specified in Schedule-B as a "Larger Urban Area" with effect from 20.12.2013 and further deemed it to be a City. A Corporation is established for the said City and the Corporation shall be a body corporate by the name "the Corporation of the city of Shimoga" having regard to

- The population of the area specified in Schedule A is being not less than Three Lakhs;
- The density of population of the area specified in Schedule A is being not less than Three Thousand inhabitants to one square Kilometer area;
- The Revenue generated from Schedule-A for the local administration in the year of the last preceding census is not less than rupees six crores per annum or an amount calculated at the rate of rupees two hundred per capita per annum, whichever is higher;
- the percentage of employment in non-agricultural activities in the area specified in Schedule-A is not less than fifty percent of the total employment;

JDA/JDD/JDF/SE

By Order and in the name of the Governor of Karnataka

SIDDIG PASHA

Under Secretary to Government
Urban Development Department

21/12

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SCHEDULE - A

1. Shivmoga Town

2. Villages

| | | | |
|----|-------------------|----|-------------------------------|
| 1 | Shimoga | 2 | Maligenahally |
| 3 | Alkola | 4 | kallahally |
| 5 | Kashipura | 6 | somanakoppa |
| 7 | Bommanakatte | 8 | Venkatapura |
| 9 | Mullakere | 10 | Navile |
| 11 | Thevarchannahally | 12 | Islamapura |
| 13 | Purle | 14 | Harige |
| 15 | Malavagoppa | 16 | Thoppinagatta |
| 17 | Urgadur | 18 | vaddinakoppahamlet of urgadur |
| 19 | Sulebylu | 20 | Harakere |
| 21 | Mandli | 22 | Gopashettikoppa |
| 23 | Gopala | 24 | Gadikoppa |

SCHEDULE - B

The limits of Shimoga City Municipality starts from west-North of the Maligenahally village boundry from Sagar to Shivmoga road. It moves towards the Northern direction of Maligenahally village boundary and touches the Alkola village at western side corner and moves along Somanakoppa village boundary towards North direction and turns East direction along the village boundary of Bommanakatte village towards North and it moves along the Navile village towards Northern side. Again it turns South-East direction of the Village boundary of Navile village and it again turns Eastern direction along the said village boundary and it moves North-East direction of Thevarchannahally village boundary and it turns towards East-South village boundary of the Thevarchannahally and cross Tunga river and turns towards the North-East side along the Right Bank of river Tunga and village boundary of purle and turns all along the purle village boundary South-East direction. Moves along the Northern side of Harige village boundary, then moves towards North direction along the village boundary of Malavagoppa and again it takes turn towards South direction of the said village boundary and reaches the Northern boundary of Dummahalli village and runs through Northern boundary towards west and reaches Thoppinagatta East boundary takes turn towards South direction and reaches the southern boundary of Thoppinagatta and runs towards East to reach Southern boundary of Sulebylu and reaches the right bank of river Tunga and crossing the river near village boundary of Harakere at Eastern corner. It moves all along the South side Boundary of said village again it turns towards North direction along said village Boundary then it turns towards Western direction along village Boundary of Mandli, Gopisettikoppa and continues along with Eastern boundary of Anupinakatte. Again it turns towards North Direction along Anupinakatte, North boundary and reaches Maligenahally village East boundary and runs towards South direction on the same line reaches to Maligenahally West boundary line. Further it moves towards North direction and reaches to the starting point of the running boundary.

TRUE COPY

SIDDIG PASHA

Under Secretary to Government
Urban Development Department

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

W-P No.

of 2025

Petitioner/s, Appellant/s

Respondent/s

Lakshman Babu Patgar

Vs.

The State of Karnataka & others

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Place: Bangalore

Date: 09/07/2025

Advocate forpetitioner.....

85 6 79

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.P.No. _____ /2025

BETWEEN:

Lakshman Babu Patgar

...Petitioner

AND:

State of Karnataka and others

....Respondents

**APPLICATION UNDER SECTION 151 OF CODE OF CIVIL
PROCEDURE**

The petitioner submits as follows:-

- 1) In this writ petition, the petitioner has sought for a writ in the nature of certiorari and to quash the order dated 18.09.2024 passed by the Karnataka Appellate Tribunal Revision petition No. 30/2017 confirming the order dated 12.09.2013 passed by the Deputy Commissioner Shivamogga in R.A. No. 22/2013-13 confirming the order passed by the Assistant Commissioner in R.A. No. 03/2003-04 dated 17.09.2010, confirming the resolution dated 31.10.2002 passed by the Committee constituted for regularization of unauthorized cultivation of government lands and also for other consequential reliefs.
- 2) It is submitted that the petitioner due to paucity of time at the time of filing the above writ petition docket has produced the photocopies of the order dated 12.09.2013 passed by the Deputy Commissioner Shivamogga produced as per **Annexure-K**, order dated 17.09.2010

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passed by the Assistant Commissioner Shivamogga produced as per **Annexure-J** and the resolution dated 31.10.2002 passed by the Committee constituted for regularization of unauthorized cultivation of government lands produced as per **Annexure-H** to the writ petition.

- 3) The petitioner is now told that when the prayer made by him is for quashing the said orders, he is required to produce the certified copies of the same. The petitioner is now advised to obtain certified copies of the said orders and he is given to understand that another 3-4 weeks' time is required to obtain the authenticated copies of the said orders. However, as the petitioner cannot wait till the certified copies are issued to him on account of the urgency involved in the matter till such time, the photocopies of the orders may be accepted.
- 4) In the circumstances stated supra and in view of the urgency involved in the matter, the production of certified copies of the order dated 12.09.2013 passed by the Deputy Commissioner Shivamogga produced as per Annexure-K, order dated 17.09.2010 passed by the Assistant Commissioner Shivamogga produced as per Annexure-J and the resolution dated 31.10.2002 passed by the Committee constituted for regularization of unauthorized cultivation of government lands produced as per Annexure-H to the writ petition may kindly be dispensed with for the time being. The petitioner hereby

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undertakes to produce the certified copies of the same within an outer limit of **four weeks** from today. In the circumstances, the enclosed application may be favored.

WHEREFORE, the petitioner most respectfully prays that, the Hon'ble Court may be pleased to dispense with the production of certified copies of the order dated 12.09.2013 passed by the Deputy Commissioner Shivamogga produced as per **Annexure-K**, order dated 17.09.2010 passed by the Assistant Commissioner Shivamogga produced as per **Annexure-J** and the resolution dated 31.10.2002 passed by the Committee constituted for regularization of unauthorized cultivation of government lands produced as per **Annexure-H** to the writ petition for time being by allowing this application in the interest of justice and equity.

BENGALURU

DATE: ~~06~~ 01.2025

ADVOCATE FOR PETITIONER(S)
(S V PRAKASH)

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.P.No. _____ / 2025

BETWEEN:

Lakshman Babu Patgar

...Petitioner

AND:

State of Karnataka and others

....Respondents

VERIFYING AFFIDAVIT

I, Lakshman B. Patgar @ Lakshman Bobbu Patgar, S/o. Babbu B Patgar @ Bobbu B Patgar, aged about 59 years, Occ: Agriculturist and Service, R/o. Devakathikoppa Village, Kotegangur Post, Shivamogga Taluk and District-577204, today having come to Bengaluru, do hereby solemnly affirm and state on oath as follows:-

1. I am the petitioner in the above writ petition and am familiar with the facts and circumstances of the case and as such I am competent to depose to the contents of this affidavit.
2. I state that the statements made in paragraphs 1 to 4 of the accompanying interlocutory application are true and correct to the best of my knowledge, belief and information, which I believe them to be true.

I swear accordingly,

Identified by,

Advocate

Bengaluru

Date: 18/1/25

No. of corrections:-



Deponent

SWORN TO BEFORE ME

M.K. VENKATESH
Advocate & Notary
No. 619, 'Krupa Haveri'
10th 'A' Main, Third Stage
Basaveshwarnagar 4th Block
BANGALORE - 560 079

NO. OF CORRECTIONS ONE ONLY

18/1/25

Book No. 1000 Page No. 1000
Reg. No. 6216 Dated 18/1/25